

HAWASSA UNIVERSITY

COLLAGE OF LAW AND GOVERNANCE

SCHOOL OF LAW

Civil procedure ii best short note

Prepared by,

TSEGAYE SEWUNET

Email:- tsegayesewunet15@gmail.com

Telegram :- @tseg_Great

Phone:- +251975014330

CHAPTER ONE

THE TRIAL AND OTHER PROCEDURES

1) Ordinary Proceedings

A) Production of Evidence to the Court:-

The purpose of Civil and Criminal Procedure Codes:-

1 Entrenching expedite trial by eliminating worthless evidence.

2 The second purpose is exclusion of prejudicing and inherently unreliable information from trial.

3 The third purpose of procedural law is protecting the privacy of the parties on learning the truth for purposes of litigation.

Thus, **some evidence**, although **valuable** and **non- prejudicial**, will be **inadmissible** eventhough its exclusion might **result** in an **incorrect** factual determination at the trial. There are several kinds of **privilege**, which **contributed** for the **exclusion**. The most common privileges that are incorporated in our laws are the so- called **communication privileges** that protect conversations between individuals who are in a **special** relationship. **What does a plaintiff or a defendant do when he files his pleading?**

According to Art. 223[1][a] and 234[1], when a party files his pleading, he includes a list of **witnesses** to be called at the trial, together with their address and the purpose for which they are to be called.

It is important to note that since the parties have primarily responsibility for presenting their cases, the court shall issue the **summons** in its **own motion only in exceptional circumstances**, that is, only where a **witness** who is likely to be able to give **crucial testimony** has not been called by either party. See Article 264 of Cv.Pr.C* On the basis of Art. 112[1] where the summons is issued at the **request of a party**, before the

summons granted with in period to be fixed, he shall pay into court

a sum of money as it appears to the court to be sufficient to defray the **travelling** and other **expenses** of the witness for one day's court attendance.

Art. 118 of civ. P. code is about summon to witness. The whole **purpose** of summoning witnesses is to **examine** them what they testify as to what they know.

- Where a **witness** is not in a position to testify in court because of physical **incapacity** or **because** of other causes. Article 122 provides that such **witness** may be examined on commission. An examination on commission is the examination of a witness by a person **specifically authorized** to examine the witness.(Note from Micky)

Witness does not have any civil and criminal duty when they are;

1. the holder of immunity: even if the witness is very necessary for justice are not expected to testify and after they are summoned by the court, if they come they can testify, but if they refuse to come the court cannot force them to testify. (they are judges, parliament members, diplomats.....)

2. holders of legal privileges: (art 267) the holder of the privilege shall respect the summon of the court and shall provide or tell his/ her privilege.

A. Expenses of witness:- See art 112 and 113(3)

When witness alleged that he cannot afford the cost, it shall be covered by the parties in whose favor the witness is going to testify. If the parties in whose favor testified **cannot** cover the

expense of witnesses the court shall **order** the payment of witness expenses according to art 113 (3).

The expense of witnesses are based on the **economic status** of the parties, shall be reasonable and in good faith.

B. Suit of Pauperism (Art 468)

When the parties are **not** able to cover the **court** fees or at the state of **poor** economic status. The privilege shall be **extended** to the expense of witnesses. Since if the courts demands the witness expenses from the party who cannot afford the cost, it is indirectly denial of justice (see also Art 37 of FDRE constitution).

For the witnesses summoned by the courts the parties shall contribute to the witness expenses or the court by it self **cover** the cost (art 264 (3)).

C. Number of witness

There is **no restriction on the minimum no.** of witness, unless the substance of the law provide the no.

witnesses to testify certain cases. Under Ethiopian civil procedure code it can be **enough one witness** (known as indispensable person). The **maximum** no. of witness are also **not restricted** under our civil procedure code.

D. Who are witness before the court of Law

In principle the court shall listen the witnesses listed or submitted in the annex of the pleading. (art 223 & 234)

But for new witnesses in addition to or replaced by listed witnesses on the pleading the party to the case shall notify the court. But the parties to the case shall not surprise the judge or the opposing parties during the trial. (see cassation decision file no. 45984, volume 9, decided on January 26/ 02)

E. change of witnesses

The parties to the case can change the witness when the existing witnesses are;

1. adverse witnesses or hostile witnesses.
2. absence of witnesses (out side the territory of the country or cannot cover up the cost of witnesses).

F. Competency of Witnesses

There are two forms of witness competency in civil

proceeding;

1. **General Competency:** no minimum age, but only check the memory of the witness to remember the facts of the case or he or she can decode or encode what she observed, heard. But if s/he is **sane** or **criminally** sentences may not be able to testify before the court.
2. **special competency:** witness that have a scientific specialization on the issue under dispute or expert witness. **G.**

witnesses summon (art 114)

The mode of summon for witnesses are similar with defendant summon in its form. (art 116)

Reasonable time should be given for the witnesses to appear before the court of law. Most often 10 days in practice. (see art 240;).

When there are witnesses **abscond**, **refuse** to receive the summon or hide himself to the court, the court, police officers, employers, and kebele administrator shall cooperate to provide the summon to the witness. (art 109). provided that; the person shall inform to the court with affidavit that the witness called by the summon is either abscond or hide himself from the court of law. (see art 103, 110 cum 205).

H. How many witness to be fulfilled in order to examine witnesses. As long as possible they shall be **heard in one day**, if not

they may change their mind by compromising with other witnesses or with the party of the case. If the witnesses are failed to appear the court shall adjourn and request parties to change their witness by imposing the cost of witnesses on the parties to the case. (art 199) N.B. a party who wishes to testify on his behalf can testify before calling his witnesses; provided that he/she is deemed as a witness to the case in all practical cases. (art 261 (2))

When the witness are too many or abroad the court establish a commission judge to listen them. (art 122-136) similarly, when witnesses are in abroad the court establish a commission judge. (130 & 127)

The effect of adjournment is cost and defense. If a party fails in the first adjournment, it is better to provide the second opportunity to come, but if not appeared again deny his/ her right. Where the witness is not resident within the local limits

of the court's jurisdiction or is about to leave those limits, the commission may be issued to any court within the local limits of whose jurisdiction the witness resides or will be present to any other person the court issuing the commission may appoint.

On this basis, the parties are required to appear before the commissioner in person or through their representatives.

*There is another way of hearing or admitting the testimony of a witness. This other way is that, if such witness is required by neither party to be examined, he may be permitted by the court to give his testimony by affidavit. This means that a witness may put what he knows about the fact in issue by an affidavit and submit the same to the court. Testimony by affidavit, if neither party to be examined.

Art 204 of Civ Pr C.

Where evidence is given by affidavit, the witness is not present for cross-examination or examination by the court, the court or the parties would not have a chance to observe his demeanor and other factors that affect his credibility. So, the court should use its power of allowing a witness to testify by affidavit in rare and exceptional cases. [Art. 204].

Affidavits can be employed in two situations:-

The first is that the party proved the facts to the best of his knowledge, and

The second is that the party may prove some fact by affidavit where he believes that the facts are happening or will happen.* It is not therefore necessary to produce other evidence

or witnesses on matters that are to be proved by affidavits. This, however, does not mean that a fact

proven by affidavit is **irrefutable**. In other words, it can be challenged and disproved.

Documentary evidence is classified as **real proof** as opposed to oral testimony.

Real evidence includes written documents and demonstrative evidence.

Photographs, recordings, and tangible objects like the murder weapon or a broken glass would be classified as real proof. Most of the real proof introduced at **trial** is in the form of **documents**.

There are generally two special rules that govern the admissibility of documents under the procedure code and the new evidence draft law:-1 Rule of authentication:-This rule requires a showing that a document, what its proponent claims it to be before it, will be admitted into evidence.

2 best evidence rule.:-The second rule related to documents that is provided in the Civil Procedure Code is the So-Called best evidence rule. The best evidence rule **requires** a party to **introduce** the **original document** or to **establish** that the original has been **lost or destroyed** before other evidence of the document's content are to be **admitted**. [Art 140 and 223 of C.Pr.C]. Each party must include with his pleading the original copy of any document in his possession on which he

relies [read Art, 223(1), and 234(1)].

Article 264(1) of C.Pr.C, Any person present in court may be required by the court to give evidence or to produce any document then and there in his possession or power. Where a party to the suit who has been ordered to produce a document **failed** to do so, the court may pronounce judgment **against him as per** article 267 of C. Production of document by persons who are **not parties to suits and who are not witnesses** are provided under Art.115 and 119 of the Civil Procedure Code.

_ - Court most of the time rules on **admissibility** of the document at **trial** stage.

The court may also **send** for the record of any **other** suit or **proceeding** either from its **own files or from the files of another court**. Art 145(1).

The procedure of admission of documentary evidence by the court.

The rules are provided in Arts.139-141 of the Civil Procedure Code. Where document has been **produced**, the court endorses

on it the **number** and **title** of the suit, the **name** of the person producing the document, and the **date** on which it was produced.

This should be done irrespective of **whether** the court **considers** the document to be **admissible** in evidence,

but where it is **inadmissible** the court must **include** a **statement** to the effect that the **document** has been rejected.

Q? When (at what stage of the proceedings) should documentary evidence be introduced?

The party will **presumably** seek to introduce in to evidence the documents on which he is relying during the presentation of his **case at trial**.

The court may at **any stage of the suit reject** any document that it considers **irrelevant** or **inadmissible**. The court might rule on the admissibility of the documents at the **first hearing**.

But, it is more likely that it will wait until the **trial**.

At the trial, the proponent will seek to introduce his document into **evidence**, and any **objection** to the admissibility of the document can be considered at **that time**.

Note that, the **court** has the duty to **exclude** or **not to admit** the document even if **no objection** is made.

In a nutshell, the code bestows the court **broad powers** to compel the attendance of witnesses and the production of documents and generally to **obtain** evidence that it considers **necessary** to enable it to decide the issues at hand in the suit.

B) Conduct of The Trial:-

At the trial each party introduces the **oral** and

documentary evidence necessary to support his side of the issue.

1. Order of Proceeding:- Burden of proof:-

Two concepts are involved under burden of proof:

A) **Burden of persuasion** is the ultimate burden of convincing the court of an issue, and it does not shift during the trial.

B) **The burden of going forward with the evidence** is on the plaintiff at the start of the trial. But shift to the defendant if defendant admits the allegations of the statement of claim and has raised what we have called affirmative defences. Article 258 of C.Pr.C. This article reflects the general rule that the party who has the burden of proof has the right to begin.

Preponderance of evidence: Art. 259 of the Civil Procedure Code stipulate that:

- 1) The party entitled to begin shall state his case, produce his evidence in support of the issues which he is bound to prove.
- 2) The other party shall then state his case and produce his evidence and may address the court generally on the whole case.
- 3) The party beginning the reply generally on the whole case.

It is worthy to note that the order of proceeding or burden of proof and shift of the burden of proof is based on the substantive law. Art 2001 of the civil code: “The party who demands performance of an obligation shall prove its existence, and the party who alleges that an obligation is void, has been varied or is extinguished shall prove the facts causing such nullity, Variation or extinction.

All at one or reserve it-Art 260.provides that:(1) Where there are several issues, the burden of proving some of which lies in the other party, the party beginning may, at his option, either produce his evidence on those issues or reserve it by way of answer to the evidence produced by the other party. 2) When evidence is reserved, the party beginning may produce such evidence after the other party has produced all his evidence, and the other party may then reply specially on the evidence so produced by the party beginning but the latter party shall then be entitled to reply generally on the whole case.2.

Production of Evidence by the Parties:-

According to Art. 261 of the Civil Procedure Code, there are three stages to examination of witnesses. These are:

1. The examination-in-chief;
2. The cross-examination;
3. The re-examination.

1) Examination in Chief/Direct Examination (art 263 (1& 2))

The **proponent** of the case shall ask to his witnesses to testify in favor of him.

The **main purpose** of direct examination is for the **establishment** of the **case** or what **submitted** in the statement of claim at the **hearing** stage.

Witnesses can testify what they perceived or in his direct or indirect knowledge. **No leading question is allowed** at this stage. **Leading questions** are a guiding questions to the answer

or almost it is putting the words of the proponent in the mouth of witnesses.

e.g. Yes or No questions or nodding

N.B. leading questions are **allowed** only up on the **permission** of the **court** & only when ;

1. for introductory questions
2. child witnesses
3. refreshing old memories (when the facts of the case are occurred in a long period of time and the witness fails to remember the facts fully)
4. on hostile or adverse witnesses. **Double bearing questions** or questions that leads to **alternative** answer s are still argumentative on whether they are leading question or not.

e.g. when you are met with me before 4 years , Roman was my wife or my fiancé or else I didn't have any relationship with her?

2. Cross Examination (art 263 (3))

It is a chance of the **opponent** to **respond**, **demolish** **impeach**, **discredited** or **defend** the claim of the proponent established during the direct examination through his witness who testify in his favor.

The opponent shall show the **erroneous**, **doubtful** and **untrue** nature of the testimony given in the direct examination; provided that; leading questions are possible at this stage. Questions at this stage shall be **limited** only on the

examination in chief; provided that, no new questions can be raised by the opponent to the witnesses.

It should be noted that during cross examination the opponent shall show: 263(2)

bias (like, witnesses special relation with the proponent, hostile with himself and etc...)

Poor reputation of the witnesses (like, his previous false testimony and if the witness is known for forgery)

Attack the capacity of the witnesses (for instance, when the witness is the child the opponent shall show his poor capacity to appreciate the fact of the case fully; if the witness is blind, the opponent shall show that the

witness cannot testify what he did not perceived in his eye and etc...) **Show the inconsistency** between the words of the witnesses during in direct examination and in cross examinations and

Show the inconsistency between the words of witnesses from the other witness of the opponent.

When there is no examination in chief or nothing is testified against the opponent, he shall inform to the court that he does not have cross examination.

provided that; cross examination of witnesses is not mandatory, but only when there is examination in chief and testified against the opponent.

3. Re- examination (Redirect examinations) (art 263 (4))

It is the second chance to the proponent with the main purpose of rehabilitation. **No new question is allowed** at this stage **except** for the purpose of **clarifying** matters which have been raised in cross examinations. Since there is no more cross examination. provided that, if new questions are raised by the proponent the other party can raise objections to the court.

Proponents are allowed to adduce a **documentary evidence**, if they have on their hand.

But **expert** witness are not **allowed** to testify at this stage.

4. Refinery examinations (art 261 (4) cum 264(2) and

266)

It is **left** to the court to ask any question to witnesses that are necessary to clarify the issue of the case, the testimony of witnesses and to the determination of the suit.3. Power of the Court during production of Evidence:

Under the **adversarial** system of litigation, the **role** of the court is **minimal** with regard to the examination of witnesses when it is compared with the inquisitorial system of litigation.

However, the Ethiopian Civil Procedure Code has given the courts **broad power** with respect to the **examination** of witnesses and the production of **documents** at the trial.

The principle of party presentation which is one of the hallmarks of the adversarial system is **modified** in our code and the court has **power to order amendment** of pleadings on its own motion, and it has the power to **frame issues for trial**. With regard to the examination of witnesses, the court has the power to put a **question** to a witness at any time during the examination. Furthermore, according to Art. 266 the court has the **power** to recall any witness who has been **examined** and may put to him such questions as it thinks fit.

If a person who is a party to a suit **refuses** to give **evidence** or to produce any **document**, the court may

order, **with** or **without** a bail for the **arrest** of such person, as it considers the attendance of such person **necessary**.

This position is inferred from the very reading of Art. 268 in tandem with Art. 118 [2] [b].

Generally the court has the ff power:-

- the court has power to order **amendment** of pleadings
- the power to **frame** issues for trial,
- The power to **recall** witness who has been examined-Art 266.- Where a party, **without a lawful excuse**, **refuses** to give evidence or produce a document in his power the court may pronounce **judgment against him**. Art 267
- Refusal to give or produce evidence- Arrest –Art 268 and 118(2)(b).

Δ Recording of evidence: Art 269:-

Where there has been an **objection** to a **question**, which is overruled, on the basis of Art. 270 of the Civil Procedure Code, the court must record the question, the answer, the objection, the name of the person making it and the courts ruling.

If a party does **not** object to a particular question at the trial, he cannot contend on appeal that the court should not have considered the evidence given in answer to the question. Where, after evidence has been recorded, there is a change in the composition of the court, e.g., when one of the judges is replaced, the suit continues on the basis of

the evidence that has been recorded, and it is not necessary to hear that evidence over again.[Art. 271(1)].

justification behind court inspection:-

As to power of inspection, according to Art. 272 of the Civil Procedure Code: The court may at any stage of the suit inspect any property or thing concerning which any question arises and shall in such a case draw up a process-verbal of its proceedings which shall form part of the record.

Open' and 'in camera' trial:-

In line to Art. 261[3], witnesses must give their evidence in open court, unless the court otherwise directs, for good cause to be recorded. Where the evidence is not to be given in open court, it

may only be heard in camera, that is, the judge will take evidence in chambers in the presence of the parties or their advocates.

C Judgment and Decree:-

According to Art 180 of the Civil Procedure Code, the court shall pronounce judgment in **open court** either at once or, as soon after as may be practicable, on some future day to be fixed by the court.

Who should pronounce judgment/ how should it be pronounced? Art. 181[2], where a case has been heard by more than one judge, the decision of the majority shall

be the judgment of the court: provided that any judge dissenting from the decision of the majority shall state in writing the decision which he thinks should be made together with the reason therefore. **Q .What should judgment contain?**

Court may not give judgment on any matter not specifically raised by the parties. However, that the court has the power to frame additional issues, and if it believes that there is an issue that has not been raised and should have, it may frame that issue, require the parties to give evidence on it, and render judgment in light of its decision on the issue.

Where a set-off is allowed, the decree shall state what amount is due to each party and shall be for the recovery of any sum, which appears to be due to either party.

Is a party entitled to get a copy of the judgment and the decree?

Lastly, on the basis of Art 184(1) of the Civil Procedure Code, after the decree has been passed, certified copies of the judgment or decree or both shall be furnished to the parties on application

to the registry of the court which passed it and the date be mentioned thereon.

Judgment and Decree (art 273 & 180-191)

It is the **end** of the litigations or disposal or resolution of

the issue of the case.

It shall be **speedy** (art 180) and in open court accessible to the public.

It shall be given in a **written** form and **signed** by the **judge**.

What is more, it shall include a **descending opinion, if any**.
(art 181 (2))

Principle and rules of judgment or pillars of judgment?

There are **three** basic guiding principle for the judges while they provide a resolution to the issue of the case they are;
A) Clear or inclusive judgment to all prayers of the parties: the judge shall never miss a judgment on what is prayed (claimed) by the parties. Thus, the judge shall give a dispositions specifically to each and every claims of the parties or avoid silence on specific place.

Provided that, **silence** on prayers of the parties amounts to **denial** of what was expressly prayed by the parties.

See cassation decision file no. 39104 v. 18 decided on march 24/04 a party aggravated by unclear decision of the court can appeal to the appellate court. See art 5(3)

B) No judgment other than what was prayed: no valid judgments other than the relief sought.

C) Judgment based on relevant laws: no more judgment based on custom, sympathy, concise, the economic status of the parties, or through any other bias. Since judges are **not** the advisor s of the parties to **add**

or **reconsider** the judgment, rather judges may order the amendment of the pleading under art 91 if it is found necessary. See cassation decision file no. 63383 v. 1

What is more, judges shall mention clear **legal backups** for their resolution, if no legal backup they shall mention **custom**, if not reasonable **natural justice**.

Judgment vs. Decree:-

Judgment

a detail parts, opinion, analysis of the case and a decree. That include the brief of the case and include; (the claim & defenses of parties, hearing, evidence adduced by parties, issues and analysis of the case) it is the reason that the judge reach to the final decisions.

Parties to the case shall be accessible to the copy of the judgment of the case.(art 184)Judgment

a **detail** parts, **opinion**, **analysis** of the case and a **decree**. That include the brief of the case and include; (the *claim* & defenses of parties, **hearing**, **evidence** adduced by parties, **issues** and **analysis** of the case) it is the reason that the judge reach to the final decisions.
- Parties to the case shall be **accessible** to the copy of the judgment of the case. (art 184)

Decree

it is the **operative** part , **slim** or **conclusion** of the judgment & comes **after** the judgment. it is the

exculpatory or a **clued** part of the judgment. Unlike, the judgment of the case it is **informative** part of the final conclusion. it makes easier to determine the execution. (see art 378) Decree Decrees have different modes that are based on the subject matter of the case and includes;

In case of movables: judges may decide to hand over the property to judgment creditor; to pay the compensations or may order evictions. See art 399 cum 185.

In case of direct payment or installment: e.g maintenance payment. See art 186 cum 394-396

In case of immovable properties and their fruits: the court may order eviction from the property or payment of the fruits value. See art 187 cum 402.

In case of set-off : see art 191.2 Special Proceedings:-

A) Summary Procedure article 284 Where summary procedure is available, the plaintiff has the option to employ it, but he/she is **not obliged** to do so. According to art 284 Summary procedure is **available** where the plaintiff seeks only to **recover** a debt or **liquidated** demand in money payable by the defendant and arising:

1 upon contract,

2 upon bond or contract written or

3 on guarantee where the claim against the principal is in respect of a debt or liquidated amount.

Statement of **claim** should contain “Summary Procedure”

and an affidavit. The defendant must **obtain** the leave to defend the suit.

-Once the judgment has been **entered** in **favor** of the plaintiff, the court should be able to **pass** the decree.

-Application for leave to **appear** and **defend** is to be supported by an **affidavit**-Art 286

-Judgment for part of the claims-Art 288

-Once the court allows the defendant to defend himself, the suit will be turned to **ordinary procedure**.

Summary procedure is designed for cases where the **defendant** is not likely to have any **defence** to the plaintiff's claim, and before instituting suit under this procedure, the plaintiff should be **required** to **swear** that he believes this to be so.

The statement of claim is not served on the defendant. Instead the court serves a **special summons in the form set forth** in the Second Schedule No 17 or in such other form to be prescribed. The summons advises him that he has been sued for a sum of **money** on a specified **obligation** and that he must obtain leave to defend the suit. The plaintiff must be served with notice of the application and with a copy of the defendant's affidavit.

Following the **application**, the court will hold a hearing, at which time the defendant may be examined on oath and required to produce relevant deeds, books, documents and

the like.

If the defence applies only to part of the claim or part of the claim is admitted, the court enters a judgment for the plaintiff in the amount of the admitted claim of such terms as to suspending execution or the payment of any amount realized by attachment, or taxation of costs as it may think fit. Where leave, whether **conditional** or **unconditional**, is given, the court may make orders with respect to the filing of pleadings, framing of issues and the like, or may order the case to be heard immediately. If the issues are clear, it should order an **immediate hearing**, since the purpose of the summary procedure is to enable the plaintiff to have his claim determined as soon as possible.

Finally, on the basis of Art 292 of the Civil Procedure Code, if the court has **entered judgment for the plaintiff**, but subsequently **discovers** that the service of the summons was **not effective** or that there is good cause for doing so, it may **set aside** the decree in favor of the plaintiff and give the defendant leave to appear and defend, if it seems reasonable to do so. The court may also stay or set aside execution and impose terms as it sees fit. B) Accelerated Procedure

Accelerated procedure is available for the hearing of certain kinds of applications, and in our legal system

there are directions for the disposition of these applications.

As it is clearly indicated under Art 301 a party entitled to have his case heard under **accelerated procedure** must file a **written**, **dated** and **signed** application within the period fixed by law for the making of such applications, or where no period is fixed, within fifteen days from the occurrence of the facts on which the application is based.

The application must specify the **capacity** in which the applicant acts and must indicate the **provisions** of the law under which it is made; it must also be supported by an **affidavit** stating the reason of it. In addition, it has to include the required **documentary evidences** as the applicant wishes to submit.

The proceeding at this point is **ex-parte**, and the defendant is not served with notice.

If the applicant is not qualified to act in the proceedings or if it is not in the proper form or not filed within the prescribed time, or if the court considers that the subject matter of the application cannot be properly disposed of under the accelerated procedure, the application will be dismissed. However, a dismissal of the application **does not operate as res judicata** as to the subject matter of the application, but a **fresh application** may not be made on

the same ground to be dealt by and **through accelerated procedure**.

There is no provision by which an interested party has the opportunity to **appear** and **oppose** the granting of the application. However, a number of cases in which an application is

authorized **involve only one party**, and where another **party** would be **interested**, he could move the court to **modify** or **set aside** its order granting the application.

As to the right to appeal, Art 306 of the Civil Procedure Code provides that unless otherwise provided by the law under which the application is made, **no appeal** shall lie from any decision under this chapter other than a judgment under Arts 309-311. And, where an **appeal lies**, from a judgment given under this chapter it shall be made within ten days from the giving of such judgment and such judgment shall **not be enforced** until the period for appeal has expired or the appeal has been decided.

The scope of application of accelerated procedure is provided under Art 300 of the Civil Procedure Code. However, if the court **concludes** that a case could properly be **disposed** of in accelerated procedure, applications other than those expressly referred to in the code may be heard under **accelerated procedure**.

3 Other Procedural Matters:-

They are **not** the major problems of procedure but for the most part they **consist** of **technical** rules or **special** procedures.

A few are more **complex** and are not essentially procedural in nature.

These procedures come when a proceeding is initiated by the **plaintiff** and the plaintiff and the defendant **demand** a temporary relief until the case is disposed.

The life of such relief **depends** on the **original** claim. A) Arrest and Attachment before Judgment:-

The provisions that we are going to discuss here under are **different** from those providing for **arrest** and **attachment** as part of the proceedings in *execution*.

It is different because it involves arrest and attachment **prior** to the time a judgment has been rendered.

ii) Arrest before Judgment:-

These rules are applicable only to suits **not** involving **immovable** property.

If the suit involves immovable property, the **defendant's** **interest** in such property may be considered sufficient **security** for his appearance.

Art 147 to bring about the legal penetration of this law, first and foremost a **warrant of arrest** may be issued against the defendant where court satisfied by 147- Where defendant is about to **leave** or has left the **limits** of

the court's **jurisdiction**, a clear intent must be shown.

- Where the contention is that the defendant is about to **leave Ethiopia**, a warrant may be issued **irrespective** of a show of intent so long as the circumstances under which he is about to leave afford a **reasonable** probability that any decree passed against him will be obstructed or delayed in execution.

The **application** may be made at any stage of the suit, that is, **before** or **after** it has come to trial, so long as a judgment has **not been rendered**, and the application may be supported by affidavit or other evidence on oath.

The purpose of these provisions is to require the defendant to **furnish security** rather than to detain him.

Assuming that the defendant is arrested, he may show the **cause** why an order requiring the depositing of security should not be entered. If he has **not shown good cause**, the court must order

him to either deposit in court money or other property sufficient to satisfy the claim against him or to furnish security for his appearance by way of a surety.

On the basis of Art 150 of the Civil Procedure Code, in case of **refusal** to **furnish security**: *In case of refusal to comply with an order under Art 148 or 149(4) the court may order the defendant to be detained in the **civil prison** until he complies with the order or until the decision of*

the suit or where a decree is passed against the defendant, until the decree satisfied: Provided that the defendant may not be so detained for more than six months.

Application by **surety to be discharged** is provided under Art 149, Accordingly, a surety for appearance may at **any time apply to be discharged**. He has an **absolute** right to be discharged upon request,

and when he is discharged, the **defendant** must find **another surety**. If the defendant is unable to find another surety, the court will order him to **deposit** in court money or other property sufficient to satisfy any decree that may be passed against him, if he is able to do so.

Once he has found a **surety** and that surety has been discharged, he is **only required** to find another surety or deposit property if he can. Where he has been ordered to deposit property and has failed to do so, he may be detained in prison.

ii) Attachment before Judgment:-

Under this procedure, in line with Art 151 of the Civil Procedure Code, the action is taken entirely **against the property**, and it is **applicable** to **all suits**, including those involving **immovable** property. Such action is to be taken where the court is satisfied that the defendant, with the intent to **obstruct** or **delay** the

execution of any decree that may be passed against him, is about to dispose of the whole or any part of his property or is about to remove such property from the local limits of the court's jurisdiction.

The crucial question is the defendant's intent.

The court must be satisfied that the defendant has the intent to obstruct or delay execution of the decree, and the decision will depend on the state of mind of the particular defendant.

Nevertheless, this state of mind may be inferred from his acts with respect to the property. However, the fact that the defendant attempted to sell a small portion of a large estate would not warrant the inference that he intended to delay or obstruct execution. The application may be made at any stage of the suits, and the allegations may be proved by affidavit or otherwise.

The plaintiff must, unless the court otherwise directs, seek the attachment of specific property, and in his application, he must indicate that property and its estimated value.

Where satisfied the court may either direct the defendant to furnish security of a specified amount, or to produce the property or its value or a portion as may be sufficient to satisfy the decree, or it may order that he appear and show cause why he should not furnish security.

The court may also order **conditional** attachment of property. Art 153 in any event, the court will order the attachment to be **withdrawn** whenever the defendant furnishes the security required together with security for the costs of the attachment, or when the suit is dismissed. .Under Art 153(5) where property has been attached prior to judgment and a **decree** is subsequently **passed** in favor of the plaintiff, it is **not necessary** for him to apply for reattachment of the property.

But an application for execution **must** still be made, and if the application for execution is **not** made within the limitation period, the attachment is **ineffective**.

Objections to the attachment of the property may be preferred by a third party on the ground that the property belongs to him or by the judgment debtor on the ground that the property is exempted from attachment.

The defendant also may claim that the property attached prior to judgment is **exempted**, although his **failure** to assert the claim at that time **should not bar** him from doing so after a decree has been entered and an application for execution filed. Attachment before judgment does **not affect** the rights

existing **before** the attachment of persons not parties to the suit, nor does it bar any person's holding a decree against the defendant from applying for the sale of the

property under attachment in execution of his decree against the defendant.

Under this rule, if the defendant becomes **insolvent** prior to the rendering of the decree, the property would **pass** to the **receiver**.

Therefore, until proceedings in execution have been instituted, **prior rights of third parties** in the attached property should **not be affected**.

B) Temporary Injunctions, Interlocutory Orders and Appointment of Receiver
The court has extensive power to **insure** that the purpose of bringing suit will **not be defeated by action that occur during the pendency** of the case and that the property in dispute will be preserved.

I) Temporary Injunctions:-

An injunction is an order **restraining** a party from doing a particular act or **requiring him to do** such an act; and the plaintiff may ask for injunctive relief as part of the final decree. It is issued during the **pendency** of the suit to prevent certain action from taking place that would **prejudice** the other party to the suit.

The Code authorizes the issuance of a temporary injunction in two kinds of situations:

1) Where action taken with respect to property will

prejudice the other party; Art 1542) Where, in a suit to restrain the breach of a contract or the commission of an act, the defendant is threatening to breach the contract or do the act pending litigation, Art 155.

We will first consider the issuance of a temporary injunction to prevent dealing with property.

In this regard, an injunction may be granted if the court is satisfied that:

- 1) The property in dispute is in danger of being wasted, damaged or alienated by a party to the suit;
- 2) The property in dispute is in danger of being wrongfully sold in execution of a decree, or;
- 3) The defendant threatens or intends to remove or dispose of this property with a view to defraud his creditors. While a party may apply for a temporary injunction, although the suit was not brought to obtain injunctive relief, the fact that the suit was originally brought to obtain such relief may be significant in determining whether a temporary injunction should be granted.

Wrongfully sold, Furthermore, where there is the danger that the property may be wrongfully sold in execution of a decree, the injunction may be issued against the decree-holder, even though he is not a party to the suit.

The provision authorizing the issuance of a temporary

injunction where defendant intends to remove or dispose of his property in fraud of his creditors should be construed to be applicable only where a creditor on a pre-existing obligation is suing to prevent such conduct, and the threatened removal or disposal might take place before the claim is litigated. Where the plaintiff is suing to **recover** on an **unascertained** claim, he should proceed by way of **attachment**, since that will ensure that property is available to satisfy any decree that may be rendered in his favor.

Where the contention is that property is in danger of being **wasted**, **damaged** or **alienated**, the injunction may be issued **only** against a **party to the suit** who is threatening to do such act. The Party should be construed to include anyone who would be bound by the judgment.

The point is that where it is clear that, even assuming the **allegations of the plaintiff to be true**, he would **not be entitled to specific performance or an injunction** as part of the **final decree**, the court should not issue a temporary injunction restraining the defendant from breaching the contract or committing the threatened act. Note that on a motion for a temporary injunction, the court does **not determine the merits** of the plaintiff's

claim. This must await the trial.

Ordinarily, as it is clearly indicated under Art 157 **notice of the application should be given** to the opposite party but if the object of the injunction would be **defeated** by the delay in giving notice, that is, there is the **immediate danger** that the party will do the act unless restrained, the injunction may be issued ex parte.

On the basis of Art 156(1) of the Civil Procedure Code, ultimately violation of an injunction may be **punished in two ways**: by the **attachment** of the property of the person or by **contempt** proceedings under article 449 of **Criminal** Code. On the basis of Art 156 (2), Where property has been

attached, the attachment remains in **effect** for a maximum of **one year**, and if the disobedience or breach **continues**, the property is sold, and out of the proceeds the court awards such **compensation** to the other party as it thinks fit.

II) Interlocutory Orders:-Art 165

Interlocutory order may be broadly defined as any order that the court considers **necessary** or **expedient** to be made pending the **determination of the suit**. The court may at any time make such orders upon application by one party and notice to the other; this includes orders for the **custody** of a minor and the **payment** of alimonies.

✓ Art 160 of the Civil Procedure Code, where movable property which is involved in the suit or which has been attached before judgment is subject to speedy or natural decay or otherwise should be sold at once, the court may order the sale of the property, in such manner and on such terms as it thinks fit.

Under this rule, the court may order the sale of securities where **market conditions** indicate that a drop in value is likely.

✓ Art 162 an application for an order of sale or for the detention, preservation or inspection of property may be made by the **plaintiff after notice** to the defendant at any time after the **suit has been instituted**. The **defendant** may make the same application, after notice to the plaintiff, at any time after he has made an **appearance**.

✓ Finally, where the subject matter of the suit is all about deposit in court, Art 164 : *Where the subject matter of the suit is money or some other property capable of delivery, and any party thereto admits that he holds the money or property as a trustee for another party or that it belongs or is due to another party, the court may order the same to be deposited in court or delivered to such last-named party with or without security, subject to further direction of the court.*

So, if A sues B to recover Eth. \$ 5,000, and B admits

owing Eth. \$4,000, A may apply to the court for an order that B deposit the Eth. \$4000. Thus, the party to whom the money or property is admittedly due may have possession while the other questions involved in the suit are being litigated.

III) Appointment of a Receiver:- In order to preserve the subject matter of the suit pending a determination of the rights of the parties, the court may appoint a **receiver** to deal with property during the pendency of the suit. In considering **whether** a receiver should be appointed after an **application** to that effect is made, the court is directed to consider:

- 1) The **amount** of the debt claimed by the applicant;
- 2) The amount which may possibly be **obtained** by the receiver when dealing with the property and;
- 3) The probable **cost** of his appointment.

The removal by the defendant of a **substantial amount** of property under suspicious circumstances during the **pendency** of a suit involving ownership of that property would be a **good ground** for the **appointment of a receiver**.

However, the court should not appoint a receiver unless the party seeking the appointment has made a prima facie case entitling him to the property in question. Although most cases will involve the situation where the

property as to which the appointment of a receiver is sought is the **subject matter** of the suit, the court is authorized to appoint a receiver of any property, and in appropriate circumstances it might appoint a receiver of property not involved in the suit.

In such authorization, on the basis of Art 166 of the Civil Procedure Code, the receiver may be given broad powers.

The court by its order may authorize him to exercise control over the property to the extent of bringing and defending suit, realizing, managing, protecting, preserving, and improving the property, collecting the rents and profits and disposing of them, and executing documents as owner. His powers will be specified in the order of appointment, and he should be deemed to **possess** those powers until **discharged** by the court, even **after** the decree has been issued.

Since the **receiver is an officer of the court**, property in his hands may **not be attached** without leave of the court that appointed him. So, too, he **may not sue or be sued** with respect to that property without leave of the court unless the order of appointment specifically provided for such suit.

After a receiver has been appointed, on the basis of Art

168, he must **furnish** such security as the court may direct, account for what he receives from the property, submit his accounts as directed by the court, and pay the amount due as the court directs. **However**, on the basis of Art 169, if he has **caused damage** to the property by **willful default or gross negligence**, the court may direct that his property be attached and apply the proceeds to make good any amount due from him or any loss or damage.

In such a case, the fact that the receiver has dealt improperly with the property does **not affect** the rights of the other parties in that property.

C) Habeas Corpus:-177-179

In Latin, Habeas is to mean, "You have the body". Prisoners often seek release by filing a **petition** for a writ of Habeas Corpus. A writ of Habeas Corpus is a judicial mandate to a prison official ordering that an inmate be brought to the court so it can be determined whether or not that person is imprisoned lawfully and whether or not he should be released from custody. The petition must show that the court ordering the

detention or imprisonment made a legal or factual error.

According to Article 15(2)i of the Ci.Pr.C, we can see that the **High Court** is given an exclusive jurisdiction to try suits regarding to Habeas Corpus. On the other hand, the

Federal Courts Proclamation No. 25/1996 in its Article 5(10) clearly stated that the power of adjudication to application for Habeas Corpus is vested on the Federal Courts.

Furthermore, inferring from the cumulative understanding of Articles 11 & 14 of the proclamation, we can understand that the material jurisdiction is given to the High court of the Federal.

The procedure is governed by Articles 177-179 of Ci.Pr.C of Ethiopia. According to article 177 of the code, an application for

Habeas Corpus may be made by the person **restrained otherwise** than in pursuance of an order duly made under the Ci.Pr.C or the Criminal Procedure Code. If such person is unable to make the application, any person on his behalf can do so.

Following the application, the High Court immediately issues a summons directing the **person having custody over the restrained person** to appear before the court together with person restrained on day to be fixed in the summons and to show cause why the restrained person should be released.

On such day, the court **investigates** the truth of the application and check whether the restraint is unlawful. If it is proved that it is unlawful the court then must order

the immediate release of the person under custody.D) Procedure in Arbitration and conciliation Decision is usually binding.

Arbitration is adversarial.

The presentations are made to prove one side right, the other wrong. Thus, the parties assume that they are working against each other, not cooperatively.

Arbitration can be either voluntary or mandatory and can be either binding or non-binding.

It is important to understand that there are **issues that are not subject to arbitration**. Article 315(2) of the Ci.Pr.C of Ethiopia clearly states that: **administrative contracts** as defined in Art. 3132 of the Civil Code or in any other case where it is prohibited by law are **not subject** to Arbitration. According to Art. 316 of the Ci.Pr.C, the court may **appoint** an arbitrator, if the law requires it.

Once the arbitrator is assigned, the **procedure** to be **followed** by arbitration tribunals will be **governed** by art. 317 of the Ci.Pr.C

E) Cost

This cost includes **all expenses** which the court litigation requests.

This could be related with payment of court fee, attorney fee, transportation fee, clerical expenses and other costs, which are directly related with the very existence of the litigation.

Normally, it is the judgment creditor who **claims** for **recovering** the costs of litigation. However, it is not all the time that the judgment creditor succeeds to get what he claimed. According to Art. 462 of the Ci.Pr.C of Ethiopia, it is the **discretionary power of the court to decide** as to whom or out of property and to what extent such costs are to be paid.

However, if the **judgment debtor is ordered** to pay the costs, **judgment creditor** shall prepare an **itemized bill of costs showing the expenses** he has incurred in the suit.

The court then fixes the cost to be paid, **after giving the other party to challenge the claim.**

This judgment, like the judgment is appealable.

CHAPTER TWO

REVIEW OF JUDGMENTS

Either of the parties to the litigation **may not** be satisfied by the decision of the **first instance court**. For that reason he/she/they may wish to find out the mechanism to review the judgment.

Reconsideration of a judgment, i.e. only rectification or correction of the judgment of the lower courts.

Q. Why the judgment of the lower court is reviewed by the appellate court?

The main **purpose** of review of the judgments are;

- To **rectify** the error of the judgment
 - The mechanism to control **freak** and **balance** (for judicial accountability and transparency)
 - To **serve** the justice
- Basically, there are three ways of reviewing a judgment.

These are:-

- 1) Reviewing before the court of rendition
- 2) Review before an appellate court and
- 3) Review before the court of cassation.

1) Reviews by Court of Rendition

It is review of the judgment by the court that provide the first decision or known as by the trial court. It is narrow and have **only five grounds** to review the pervious judgment of the trial court. The grounds are;

- a) Oppositions (art 358- 360)
- b) Discovery of improper and new evidences (art 6)
- c) Procedural irregularities (art 207-211)
- d) Remand &
- e) Review for set aside for unduly served summon (art 78 & 405)

In principle, a court or a judge may **not** rectify his own decision after he provide the final decision to the case; provided that, in exceptional case the judge may review his own decision when there exist the following five grounds.

1.1) Procedural Irregularities:-(art 207-211).

Procedural irregularity is distinguished from what is called a *mistake*. The court may; on its **own** motion or on motion of the **parties**, correct any clerical or arithmetical mistakes in the summons, judgment, decree or order or any errors arising in those documents from any accidental slip or omission, and such mistakes or errors do not constitute irregularities. Procedural irregularity is quite different from mistake,

both in its **concept** and **effect**.

If the court, which rendered the judgment, understands that there were procedural irregularities, i.e., **non compliance with the provisions of the Code**, and such irregularities have **substantially affected** the disposition of the case to the detriment of one of the parties, it may, on its own motion or on motion of either party, set aside the proceedings in **whole** or in **part** as irregular, amend them, or make such other order as may be appropriate.

Procedural irregularities also includes;

Vague judgment: when it is difficult to identify the decree holder & debtor.

Court fee: when the proceeding started without the payment of the court fee. See v.1 file no. 17352. **Change of the presiding judge**: parties can request to

correct such procedures.

Where such irregularity has occurred *prior* to the taking of the **preliminary objections** or during the course of the **proceedings**, the party affected must **raise** his **objection** at that time.

Where it has occurred **subsequently**, the court may refuse to give judgment, or if it has already rendered judgment, it may **set it aside**.

@ The very existence of procedural irregularity by itself will **not guarantee** the **revision** of the judgment of the court of rendition, :- such irregularity must *substantially affect* the decision of the case on the merits. However, if the irregularity does **not** affect the court's decision on the merits, the proceedings will **not be set aside**. On the other hand, also, **even if** the irregularity might have affected the judgment that was given, the proceedings will **not be set aside** if the irregularity can be corrected.

- Where the proceedings are **set-aside in part**, any step taken prior to the occurrence of the irregularity shall **not be affected**. For instance, if an irregularity occurred at the **trial**, the proceedings of the trial would be set aside, but those which took place at the **first** hearing will remain **binding**.

- Unless an application to set aside the proceedings on

grounds of irregularity has been made to the trial court, the occurrence of the irregularity may **not** be taken as a **ground of appeal**. The only exception would be an irregularity arising from an alleged lack of *material jurisdiction* or *one alleged to exist in the judgment or decree*. Any irregularity is **deemed** to have been validated where **no appeal** is taken from the judgment or where the judgment is confirmed by the appellate court.

1.2) Newly Discovered Evidence:- (Art 6)

Article 6 of Cvi. Pr. C, a party may apply for review of the judgment in the court of rendition on the ground of newly discovered evidence where:

1. no **appeal** has been taken from the judgment or no appeal lies;
2. **subsequent** to the issuance of the judgment, he discovers **new** and **important** matter such as **forgery**, perjury or bribery, which despite the exercise of due diligence, was not within his knowledge at the time of giving the judgment; and
3. had such matter been **known** at the time of giving the judgment, it would have materially **affected** the substance of the decree or order the review of which is sought.

In criminal cases judgment may be given in false evidences. But once the offender convicted by such false evidences there is **no possibility** in criminal law to

review the judgment on the ground of discovery of new and improper evidences, but the civil case does have the option to review on such ground under art 6.

There are three criteria that should be fulfilled, so that the court of rendition can review its own judgment (element of article 6):-

- a) the evidence must be discovered *after the judgment is rendered*,
- b) the newly discovered evidence *must affect the decision*,
- and c) the evidence must be of such nature as to suggest *improper conduct*, which tainted the judgment with fraud. i. e., forgery, perjury, bribery or the like.

Three criteria are interrelated to each other. If one of the criterions failed, the court of trial will not be in a position to review the judgment.

a) the evidence must be discovered after the judgment is rendered:-

The party who alleges such evidences as a ground of review shall show his vigilance enough or he shall show that he never **aware** or **obtained** the evidences during the first trial or the evidences during the trial were forged.

b) the newly discovered evidence must affect the decision:

If the defendant, after the judgment is rendered, finds out the fact that the plaintiff had produced a bribed witness in the trial court, he may have the right to apply to the court

of rendition for revision.c) the evidence must be of such nature as to suggest improper conduct, which tainted the judgment with fraud. i.e., forgery, perjury, bribery or the like.

Suppose that the plaintiff assumed that there were no witnesses to the transaction and the only witnesses at the trial were the plaintiff and the defendant. The court believed the testimony of the defendant and rendered judgment for him. Subsequently, the plaintiff discovers that there was an eyewitness of whose parties were unaware. He cannot obtain a review of the judgment on this ground, since the evidence does not show any improper conduct of the defendant affecting the judgment.

However, if the defendant concealed the identity of the witness when asked by the court knew of any witnesses to the transaction, review would be proper due to the fraudulent conduct of the defendant. Or, if the witness testified on behalf of the defendant, and the plaintiff later discovers that the witness was bribed to commit perjury, review would also be proper.

Therefore, it should also be stressed that the evidence must not have been within the knowledge of the applicant at the time the judgment was given.

Finally, there are some important points as far as newly

discovered evidence is concerned:-

✓ An application for review by the court of rendition, on the ground of newly discovered evidence, **cannot be filed if an appeal has been taken**. In such a case, the evidence could be brought to the attention of the appellate court which would consider it in deciding the appeal. ✓ An application could not be filed even if the appeal were filed **too late** and were thus **dismissed**.

However, if an appeal was taken and **dismissed** on the ground that an **appeal did not lay** from the decision, an application for review **could be filed**, since such an application is authorized whenever an appeal **cannot** be taken.

Δ Procedure to follow:

- The application for review must contain the same particulars as a memorandum of appeal, and be supported by an affidavit containing strict proof that the new evidence relates to forgery, perjury, bribery and the like, and that the evidence was not, by the exercise of due diligence, within the knowledge of the applicant at the time of judgment.
- It must be filled within one month from the time the evidence, which was the basis of the application, was discovered.
- There is no period of limitation related to the discovery

of the evidence, and an application for review party.

- If the court finds that the application for review should be granted, that is, that the applicant has evidence which satisfies the requirements for review, it gives notice to the opposite party so that he can appear and be heard in support of the decree. After hearing him, the court will make such order as the rehearing of the case as it thinks fit.
- No appeal lies from the order of the court granting or rejecting an application for review.1.3 Opposition:-(art 358- 360) Relevant articles; 41,418,421,447 &455.

Opposition can be raised by a person who, **though not a party**, is **affected** by the judgment.

Any person who **should** or **could** have been made a **party to a suit** and whose **interests** are affected by a judgment in the suit may, if he was not a party to the suit, file opposition to the judgment **before** the judgment is **executed**.

Article 358 of the Cv.Pr.C, there are **three** conditions required where by a party filing opposition should fulfill.

These are:

1. He/she should or could have been **made** a party;
2. His/her **interests** are **affected** by the judgment rendered in his absence; and
3. He/she is filed **prior to execution** of the decree.

Based those requirements, it would seem that three classes of persons would be able to file opposition; *indispensable parties*, persons who are the *real parties in interest*, and persons who, as a result of the decree, will be **liable for contribution or indemnity to the unsuccessful party**.

The purpose of the rule permitting the filing of opposition is to enable a person who is affected by the judgment, but who was probably unaware of it at the time of rendition, to prevent the interference with his interests that will result if the judgment is executed.

The same is true with respect to an *indispensable party*.

Once his existence is known, he must be made a party, and by enabling him to file opposition, this can be accomplished. If a person liable to make **contribution or indemnity** was

aware of the suit, he could have intervened under Art. 41.

If he **was not aware** of the suit, this provision enables him to come in after judgment, since he could have been made a party and his interests will be affected by the judgment.

What if such party was aware of the existence of such suit prior to judgment?

Although there is *no requirement* to this effect in the Code, it is submitted that, except for indispensable

parties, the application to file opposition should be rejected if the applicant was aware of the suit **prior** to judgment.

Because it **cause** the delay of court litigations. However, it is also hard to **deny** a party with **real interest** which opposes the judgment of the court before it is executed because of two reasons:-

First, even though he or she was aware of the litigation, it is **hard to prove** its awareness of the litigation.

Second, if it is found that he was aware of the proceeding, it is **difficult** to deny him opposition as the code **does not deny** him to file opposition when he is aware of the litigation.

The person filing the opposition has the **opportunity** to **raise objections** to the judgment and may, if he so desires, introduce evidence.

Per article 360 of the Cv.Pr.C, the court may then **confirm**, **vary** or **set aside** the judgment.

Intervention VS Opposition
Intervention (art 41)

- before judgment

- the party claims while intervening by stating that his/ her interest will be affected by his absence from the proceeding.

Opposition (art 358)

- After judgment, but before execution (when a person are not aware of the case is at the pending or shall show

the party is unable to defend the case)

-the party claims by stating that his/her interest is affected by the judgment of the decision.

-if a party fails to exercise his/her right under art 41 he/she can oppose under art 358 Intervention under art 41 and opposition under art 358 are **similar** in;

a) **parties are indispensable**: such as spouse, co-hires, co-legates joint owners, partners & joint and several creditors.

b) **mandatory joiner**: see art 39 & 40.

can a person who is denied under art 41 can come up through art 358?

No, he can not, but he can **appeal** for the refusal of the court ; provided that, a person denied his/her right under art 41 means his/ her right to oppose under art 358 is denied.

can parties oppose declaratory judgment?

Declaratory judgments are an accelerating procedure.

See art 305 & 306 e.g. certificate of heir; ex parte-hearing, change of name,

marriage declarations, declaration of absence.

In principle, Declaration judgment are **not subject to opposition**. See v. 15 file no. 79871, February 11/05 & v.15 82679 march 22/05

In exceptional cases when declaration judgment **affects**

the interest of the opposing parties, they can oppose. E.
g. filiations declaration.

While opposing parties oppose declaration judgment
they shall submit their opposition with affidavit and by
paying the appropriate court fee. See art 359 cum 205.

Difference between investigations of claims to attached
property and oppositions:-

There are certain differences between opposition under
art 358 and opposition of the investigation of claims to
the attached property under art 418. Art 418

-the opposing parties interest are affected by the
execution order , but nothing is affected by the
judgment.

-the execution court by mistake attach the
property of the opposing party to 3rd party in belief
that the latter is the judgment creditor.

-The opposing party submit his statement of
opposition or objection to the execution court Art 358

- the opposing party
interest is affected by the trial court judgment.

-the opposing party right or property is affected on
the judgment to other party due to his/her absence.

-the opposing party shall
submit his objection to the rendition court.-The opposing party
shall claim by stating that I am not & I should not be the

party to the case or I am not the decree holder or creditor. Since the opposing party is **indifferent** to the outcome of the case.

-the opposing party does **not any interest** or agenda in advance on the outcome of the case. Such person has a preferential right or **priority** right.

-the opposing party shall claim by stating **that I should be a party to the case.**

-The opposing party have interest on the outcome of the case.1.4

Review for Set aside for unduly served summon

(art 78 & 405) .The rendition court review its own judgment after checking whether the summon is duly served or not.

The conditions under art 78 are

a) when one of the party of the case are **not served** at all.

See v.6 file no. 35403

b) when one of the parties are duly summoned but the party have a **good reason for his absence before court** of law. See v. 12 file no. 54080.

Good cause can include serious **illness, morn, mistake** of the day of hearing.

All reviews results in **set aside** or **annul** or **vacate** the previous judgment and then new trial or proceeding will be conducted;provided that, a party to the case shall request the set aside of the decision with in **one month from the day of his/ her awareness.** See v. 13 file no. 76601 & v. 18

101478.

1.5) Remand (art 341 &343)

2) Reviews by Appeal to a Higher Court:-320-349.

An appeal may be defined as an application by a party to a higher, or as it is called, an **appellate court**, asking that court to **set aside** or **revise** a decision of a subordinate court.

An appellate court reviews the decision of the subordinate court to determine whether that court committed such errors in its hearing and disposition of the case, which guarantee the appellate court to reverse the decision. An appeal, then, means a **review of the case** and **not a retrial** of the case by the appellate court.

Grounds for appeal will involve errors of law allegedly committed by the subordinate court.

As a **rule**, the appellate court **does not hear additional evidence** on the appeal, and where the introduction of additional evidence is permitted, it is limited to exceptional circumstances.³⁴⁵

Is all matters are appealable?

as a rule, all matters are appealable, except it is **unappealable** due to waiver of the right by the parties or nonappealable on statute. (a contrary reading of proc no. 25/96.

Who may appeal and against whom? the party taking the

appeal is called the appellant, and the party against whom the appeal is lodged is called the respondent; provided that, **no extrinsic parties can appeal** to the appellate court see art 320 (1), thus. It is limited to;

- Party plaintiff and defendant
- Intervening parties & Interpleader (usually by court order see art 41 ,43 & 32(2))
- Auction purchasers, transfer of rights
- Parties opposing the attachments (see art 158 and v. 17 file no. 10632)

= Appeal is against **respondents** under art 32(2), 33(3) cum art 224.

Burden of proof:-

The judgment appealed from is **presumed** to be **correct**, and the burden is on the appellant to show that it should be reversed or varied. Thus, provided that, where there was an **appeal** and a **cross-appeal**, the **appellant** would have the burden of showing that the portion of the judgment he was attacking was erroneous, and the **cross-appellant** would have the same burden with respect to that portion of the judgment which he was attacking.

Is there a possibility that both parties of the case may appeal?

It is also possible that both parties may be dissatisfied

with the decision and if so, both may appeal. For example, the court may have entered judgment for the plaintiff, but may have awarded him a **lesser** amount of damage than he or she claimed; provided that, the **defendant** may appeal from the decision on the issue of **liability**, and the **plaintiff** may appeal from the decision on **damages**. Thus, it is known as cross- appeal. The **plaintiff** would be the *cross appellant* and the **defendant** would be the *cross respondent*.

Can a party who proceeded on alternative theories of liability, and the court found in his favor on one theory, but not on the other, and gave him all the relief sought.

Can he appeal on the other theory he lost?

The plaintiff cannot appeal on the ground that one issue was **decided against him**. So too, if the defendant contended that there was **no contract** and alternatively that **performance** was prevented by **force majeure**, and the court found that there **was a contract**, but upheld the defendant's contention as to force majeure and entered a judgment in **favor of him**, he could **not appeal** against the court's decision as to the **existence of the contract** ; provided that, A party may only appeal where he has been adversely affected by the judgment, with which he is challenging the decision of the trial court. In multi-party litigation, any or all parties may appeal if they are **adversely** affected by the decision. But, the

parties appealing need not make all the other parties respondents to the appeal. See art 331

Where an appeal lies, but a remedy is available in the court, which gave the judgment or order, no appeal may be lodged until such remedy has been exhausted. This would include the situation, where **procedural irregularities** have occurred in the subordinate court .See article 320(2)

Is there appeal on the merit of the case in one party hearing (exparte) ?

in principle, no appeal lies on the merit of one party hearing, except on errors of law. See v. 8 file no. 36412, **Is there a second appeal?**

There is one appeal as of right. Where the case was tried in the First Instance Court, an appeal lies to the High Court in whose area of jurisdiction that the First Instance Court lays;

Where, on appeal, the **appellate court confirms** the judgment, a further **appeal does not lie**. provided that, If, however, the judgment is varied or reversed, a second appeal lies to the next highest court. See art 321(2)

Is there any option for a party who does not have a second appeal?

Such party have only one option. Thus, he/ she can bring

his/her grievances to the cassation bench. Is there any circumstance that allow a third appeal as a right?

There is no provision for a third appeal under Ethiopian civil procedure code.

Suppose that the issue is the subject matter of a state which has Social court structure in which it is initially instituted in the Social Court, and the state and judgment was for the plaintiff. On appeal, the Woreda Court reverses and gives judgment for the defendant. Since the decision of the Social Court was reversed on appeal, a second appeal which lies to the High Court is possible.

provided that, no matter how the High Court disposes of the case, i.e., whether it confirms or reverses the decision of the Woreda Court, a further appeal does not lie to the Supreme Court.

Is there a zigzag appeal? From state court to federal court & back to state court? Strictly forbidden and the parties shall keep the line or jurisdictional hierarchy of the courts.

Is there courts delegation in case of appeal?

Ethiopia follows the diagonal delegation, accordingly delegations are take place;

FFIC to SHC

FHC to SSC

Only in **federal** matters SSC may conditionally delegate its jurisdiction to FSC.

Q. What are the different forms of appeal?

An application to the appellate court may be of two types;

- 1) Appeal on Judgment and
 - 2) Appeal on Orders (Interlocutory Appeal).
- 1) Appeal on Judgment

Any application for **review of orders** made by the court at any level of the litigation is **not** considered as appeal on **judgment** unless it is proved that such judgment is on the **merit of the case**; provided that, regardless of the length of the procedure, i.e., with out trial (at the **first** hearing) or after trial (**full**-scale trial), if the case is adjudicated on its **merits**, then any application for appeal on such judgment can be considered an **appeal on Judgment**.

- 2) Appeal on Orders (Interlocutory Appeal)

An appeal from an interlocutory matter, a matter on which the court has rendered a decision, but the decision does not finally dispose of the case.

Is it possible to appeal on interlocutory orders of the court under Ethiopian civil procedure? As a **rule**, interlocutory appeals are not **permitted**. No appeal lies from any decision or order of any court on

interlocutory matters; such as order on a motion for adjournment, a decision on preliminary objections, a ruling on the admissibility of evidence and a decision on an application to sue as a pauper. (see art 320(3)).

Provided that, any such decision or order may be **raised as a ground of appeal** when an appeal is made against the final judgment. (see art 273, & 242, on compromise see art 274 & 277, on dismissal see art 73 & 245).

Thus, a person may appeal from any order directing his **arrest** or detention, or **transferring property** from one party to another (see art 404) or refusing to grant an application for **Habeas Corpus**. See article 320(4) provided that, they are the only exceptions permitted & such orders may be considered interlocutory in nature, but they do involve **restraint** of a person or **deprivation** of property, and it

was decided that a person should be entitled to an **immediate** ruling on the **validity** of the detention or transfer.

Moreover, parties may appeal on interlocutory orders on disposition (see v. 15 file no. 89893)

No appeal lies on **denial** of pauperism or court fee **exemption** (see art 468 & see v.6 file no. 23744).

It must be **stressed**, however, that a decision constitutes a **final judgment only** where the decision itself **finally**

disposes of the case or results the closing down of the case. Even though the decision denies a party the relief requested, it may not finally dispose of the case, and, therefore, it is not appealable.A) Ground of Appeal (art 327-29)

In the memorandum of appeal, the appellant must set forth his **grounds** of appeal, the grounds on which he objects to the judgment from which the appeal is taken. They must be stated concisely and without argument; provided that, a **mere grievance**, trivial, or harmless errors does not constitute as a ground of appeal .

° The errors that constitute as a ground of appeal are includes; Art. 328.

- Errors in relation to **procedure** (e.g. if the court does not accept objections)

- Plain** errors (e.g. fairness errors or due process errors or practically based errors)

- Errors arising from fact **appreciation**-Error on **evidence weighting or measurement** (includes a problem in interpreting the evidences)

- Error on **law** (when proper legal back up is/are not used to decide the case).

It is very important that the **appellant** state all his objections to the decree in the memorandum of appeal.

See Article **327**

B) General Rules on Appeal:-

The court may decide the case on **any** ground it thinks proper, the **appellant** may not ordinarily present arguments on a ground that he did not raise in his memorandum of appeal; (see art **327** (3) :- provided that; except where the court permits the introduction of new evidence, the appellant may not raise any fact, which was not in evidence in the subordinate court. (see art **329**)+**345**.

This rule is known as preservative rule (no De More Review), i.e. no new fact, evidence, annex, issue or argument cannot be raised; See art 345,346,328,329. provided that, **forgetting** any of the above things to raise in the lower court are **deemed** as **waived**. See v.6 file no. 25026 & v. 8 file no. 37761.

As the exceptions to the **preservative** rules under art 345 parties may submit evidence but only through *affidavit* (see art 205) & parties shall show their vigilances where;

- The trial court refused to accept evidences. (see art 223 & 137)
- Just new evidences that a party come across after the judgment of the trial court.
- The evidences are important for carriage of justice. (see v. 15 file no. 72980. Fact in evidence should be construed to include **any objection** or **issue** that was not raised in the lower court; provided that, An objection or issue **cannot** be raised for

the first time on appeal, and an appeal should be **limited** to a review of the questions decided by the lower court.

Similarly, **certain objections** are **waived**, if not raised during the trial court, i.e., at the first hearing, and, of course, they **cannot** be raised on appeal too.

Q. Is there any exceptions to the above general rules on appeal?

There are certain exceptions to the general rule and includes;

1) **lack of material jurisdiction**, which goes beyond the power of the court to proceed at all, may **never be waived**, and it is specifically provided that this objection may be raised on appeal, even though it was not raised in the court below. 2) **Failure to join an indispensable party**: since the absence of such a party **affects the power** of the court to hear the case, the objection may be taken **at any time**.

3) **New legal argument on appeal**: on an issue that was decided on the lower court. It is not **objected** (possible) to raise it even though this argument was not made in the court below. Since the appellate court, can decide the case on the basis of any rule of law it considers applicable.

It cannot be said that the case is being **retried**, because **different** legal arguments to sustain a party's position on an issue are raised on appeal; provided that, what **cannot**

be raised ordinarily are **new issues** and **new objections** to the action of the subordinate court.

C) Instituting Memorandum of Appeal:-1) Memorandum of appeal:

A party takes an appeal by filing in the registry of the appellate court memorandum of appeal signed by him or his pleader.

The memorandum of **appeal must** contain, the requirements stated under Art.327.

The application must also state the **nature** of the evidence, the **names** and **addresses** of the **witnesses** to be called, if any, and the **reason** why the evidence was not produced in the subordinate court. In addition, the appellant must **submit sufficient** copies of the memorandum for service on each respondent.

Where the memorandum is not in the proper form, it may be **rejected** or **returned** to the appellant for the purpose of being **amended** within a specified time, or it may be amended then and there. See article **3302**) Time for Appeal (art 323-26)

The memorandum must be filed **within 60** days from the time of the **delivery** of judgment. See article **323(2)**

However, this may not be true all the time, in which most of the time;

- In civil cases 60 days (including holydays)

- In labour cases 30 days (proclamation no. 377/2004, art 138 (3) & 154(1))

- Bankruptcy laws 15 days (see proc. No. 986)

Effect of failure to apply the memorandum within the period of limitation:-

The time limit must be observed **scrupulously**, since it is in the nature of, a period of limitation. See art **324(1)**

The party shall submit the application for **leave** or **lapse** to appeal out of time & shall be in **writing** and must show the **cause** why the appellant did not appeal within the prescribed period with necessary supportive evidences.

See Article 325 & 326. see also v. 13 file no. 74185. e.g. **delay of copy of the judgment (see art 184), illness, prison, national call, mourn .**

If the court is **satisfied** that the appellant was prevented by good cause from appealing in time, it **records** an order granting the application, and the appellant shall file his memorandum of appeal within 10 days of such order; provided that, **no appeal** lies from a decision **dismissing** an application for leave to appeal out of time. See Article 326.

What if the lapse of appeal period of limitation is due to the negligence of parties advocate/ lawyer?

No appeal lies or cannot be raised as a good cause for delay of the memorandum of appeal submission. See art 326/2.

3. Cross-objections (art 340)

The party in whose **favor** judgment on the **merits** was entered may have certain **objections** to the decree, which he may want to raise in the appellate court, and if so, he may file what is called a cross-appeal.

However, the **objections** may be such that he is unwilling to file an appeal in order to raise them; he is relatively **satisfied** with the judgment as it is. But, when the other **party appeals** from the decree, he may **decide** that he now wants to raise such objections. It is, therefore, provided that; the respondent may, upon payment of the prescribed court fee, take any cross-objection to the decree or order which he could have taken by appeal notwithstanding that he did not appeal from any part of the order or decree.

This is **analogous** to the provisions relating to **counter claim and set-off**.

Difference between cross- appeal & cross-objections;-

There is no substantive distinction between a cross objection and a cross-appeal, and the **same grounds of attack** may be raised by both methods.

The **cross-objections** must be filed in the form of a memorandum of appeal within one month from the time when the respondent is served with the summons to appear and defend the appeal. The cross-objection may

be heard and determined notwithstanding that the original appeal is not proceeded with. See Article 340.[cross-appeal](#)

common forms of appeal
and both parties appeal
without waiting one another.

that the respondent is given the opportunity to present cross-objections

parties to appeal. Since
both submit the application
of appeal separately.

[cross-objections\(art 340\)](#)

it is one party appeal , but
the other party does not
have an interest to appeal

e.g. in a case where a party has obtained a decision.

the other party appeals due to the provocation or
trigger or anger by the appeal of the party who
appeals first.

ብሔራዊ ስርዓት ለመቀበል

እንዲያውም ለመቀበል ሆኖ::However, if the [original](#) appeal were not
validly filed, there would be [no opportunity](#) for the respondent
to present cross-objections.

[Filing of a cross-objection](#) is merely the device by which
a respondent who did not file a [cross-appeal](#) may attack

the decree after the unsuccessful party has taken his appeal. Once, cross-objections have been filed, the **practical effect** is the same as if he had taken a cross appeal.

4) Additional Parties :- As the same vein with the trial court; the **appellate** court has the **same kind of power** with respect to persons who were parties to the original suit but who were not made parties to the appeal; Provided that, if the appellate court concludes that such a person is interested in the result of the appeal, it may direct that he be made a respondent. See article **40(5).5**. Stay of Execution :-

As a rule, an appeal has been taken does **not operate** to **stay** the proceedings or to **prevent execution** of the decree; provided that, **execution** can be **stayed only upon** a showing that substantial loss will result if the stay is not granted and that appellant's furnishing security for the performance of the decree.

A stay of execution may be ordered by the **appellate** court or by the **court** or by the **president** of the court, which **rendered** the decree if an application, is made to that court before the expiration of the time allowed for appeal. See article **332-334**.

Both the appellate court and the subordinate court are authorized to grant stays; provided that, the subordinate

court should **only** order a stay if an **appeal has not** been taken. Once an appeal has been taken, any stay should be granted by the **appellate** court. In principle, the rules authorize only the granting of a **stay of execution**, and do not authorize the **setting aside of an execution** that has already taken place; provided that, **after** the decree has been **executed**, an application for a stay of execution **cannot** be entertained.

Where the case is before the appellate court, the president may grant a **temporary stay for a period not to exceed 15 days**, as may the president of the court, which passed the decree if an appeal, has not yet been taken.

See art **334**.

The court or presiding judge may only issue a stay if satisfied that;

1. **Substantial loss** may result to the party applying for the stay unless the order is made;
 2. **the application** has been made without **unreasonable delay**,
 3. **money has been deposited**, security given or a surety produced by the applicant, guaranteeing due performance of the decree as may ultimately be binding upon him;
- provided that; the parties must be heard on the application although the court may, on application supported by affidavit, make an **ex parte** order of stay pending the hearing of the application.

There are two approaches to the granting of a stay:

- 1) granting a Stay as of course and
- 2) granting a stay only in exceptional cases.

The Civil Procedure Code adopts the latter approach. The fact that an appeal has been taken does not prevent execution of the decree, and it is only where the appellant demonstrates that substantial loss will result if execution is not stayed that the appellate court will interfere with the execution of the decree.D) Procedure on Appeal

a. Hearing of Appeal

The memorandum of appeal is filed in the appellate court, and it serves as the pleading that originates the appellate proceedings. Thus, the appellate court may decide the case solely on the basis of the grounds set forth in the memorandum of appeal.

It fixes a day for **hearing** the appellant or his pleader, and following the hearing, it may dismiss the appeal **without** calling on the **respondent** to appear if it **agrees** with the judgment of the subordinate court. See article 337.

Where the appellate court believes that the appeal is groundless there is no reason to proceed further, and the court is authorized to dismiss the appeal. On the day of the appeal;

- 1) The **appellant** is to be heard **first** since he has the burden of proof on the appeal.

2) If he has not made out a case justifying further argument, the court may **dismiss** the appeal at that time. If the court does not dismiss the appeal, the respondent is then heard in **rebuttal**, and the appellant is entitled to reply. The court may, however, require the respondent to submit a written reply to the memorandum of appeal and the appellant to submit a written counter-reply. See article **339**.

b) Framing the issue (see art 343)

If, during hearing the appeal, the appellate court concludes that the subordinate court has **omitted** to **frame** or try an **issue** or to **determine** any question of fact which is necessary for the decision of the suit on the merits, the appellate court may frame those issues and refer them to the subordinate court, which is to take the evidence on those issues. See article **343**.

c) additional evidences (see art 345 cum 329)

As a rule, the parties are **not permitted** to produce additional or new evidence in the appellate court; provided that, all issues must be raised at the trial court so that the court can render a final judgment on the merits.

Exceptionally, there are three situations where the introduction of new evidence on appeal is authorized.

These are where: see art 345 (1)

- 1) The subordinate court refused to admit evidence that ought to have been admitted;
- 2) The appellate court requires any **document** to be or any **witness** to be examined to enable it to pronounce judgment; or
- 3) There is **substantial** cause, justifying the production of the evidence. See article **345**.
- d) Review of the finding of fact

In Ethiopia, the appellate court is not bound to accept all findings of fact made by the subordinate court, and there are no express provisions of the Code dealing with the effect that is to be given to such findings.

There are two approaches on the review of the finding of fact;

- a) Either that the appellate court will be **dependent** on the findings of fact made by the **subordinate** court or b) The appellate court may **determine** on the findings of facts.

@ If the appeal is not to be a **retrial** of the case, it follows that to some extent, the appellate court must accept the **subordinate** court's findings of **fact**.

What if the decision of the trial court rests on primarily through oral evidence and based conflicting oral testimonies? And what if the base of the decision of the trial court is primarily on written evidence?

1) Where the evidence is essentially undisputed, or all the evidence consists of documents, the question is what inferences should be drawn from that evidence, and the appellate court is in as good a position to draw those inferences as the subordinate court. 2) Where the evidence is primarily oral, and the decision depends on the court's resolution of conflicting oral testimony, the findings of fact made by the subordinate court should not ordinarily be disturbed.

3) Where the findings rest on written evidence or undisputed oral evidence, the appellate court is in as good a position to draw those inferences and should not be bound by the findings of the subordinate court.

Where the evidence supporting the finding is primarily oral and involves the resolution of conflicting oral testimony, the finding of the subordinate court should ordinarily be accepted.

Where the issue was decided entirely on the basis of written evidence, it may be reviewed fully by the appellate court. The more difficult case is where the finding depends on

both written and oral evidence.

-Where the evidence supporting the finding is primarily oral and involves the resolution of conflicting oral testimony, the finding of the subordinate court should

ordinarily be accepted.

-Where the issue was decided **entirely** on the basis of **written evidence**, it may be **reviewed** fully by the **appellate** court.

Where, although there was conflicting oral testimony, it appears that the **written evidence or undisputed oral evidence** was such as clearly to outweigh the **disputed oral evidence**, the appellate court can disregard the findings in light of the written or undisputed oral

evidence.E) Judgment on Appeal:-

Article **348** the judgment of the appellate court may **confirm**, **vary** or **reverse** the decree or order from which the appeal is preferred.

1. Reversal for substantial error:-

Whether the decree should be **reversed** or **varied** as a result of an error committed by the trial court, it is important to determine whether the error amounts to what is called a procedural irregularity.

If the **error** is such as to amount to a mere irregularity, the Code directs the appellate court to correct it, but also provides that the decree may not be **reversed** on that ground. See article **211**. provided that, the decree should only be **reversed** or **varied** if the subordinate court committed "substantial error, " which **affected** its decision.**What is the effects of errors which does not affect the**

outcome of the case & the power of the appellate court in such issues?

It is only where the error substantially prejudiced the unsuccessful party that the judgment will be reversed or varied:- provided that, where procedural errors have been committed, the decree is not to be reversed unless the errors were such as to prevent a valid judgment from being given. In such a case the appellate court is directed to quash the proceedings and order a retrial.

To sum up; a decree should be reversed because of procedural errors only where those errors affected the power of the trial court to hear the case or denied a party a fair trial. Such errors prevent a valid judgment from being given, not be construed to have this effect, and even though committed, should not result in a reversal.² Remand (see art 341 cum 342)

One of the powers of the appellate court is to remand the suit to the trial court.

It is an action by an appellate court in which it remands, or sends back, a case to the trial court or lower appellate court for further action.

Thus, the case is said to be remanded.

Usually the case remanded for the lower courts are due to;

1) If the trial judge has made an error, which requires a new trial or hearing. (e.g. If a trial court refuses to allow a party

to introduce certain evidence (believing it to be inadmissible).

2) If the appellate court decides that the **evidence** should have been **admitted** and that the exclusion of the evidence was prejudicial to the party offering it, the appellate court would likely remand the case for new trial and order the evidence introduced.

There are two type of remand;

1) **Remand of case by appellate court (art 341)**

When the trial court disposed the suit up on a **preliminary point** and if the decree or order is reversed in appeal. (sub 1)

In here the appellate court remanded the case to the trial court and the appellate court **may frame or may not frame** issues while remanding the case to the trial court.

Remand by reversing the trial court dismissal on preliminary objections under art 244 & 245; provided that, the appellate court remand the case by stating that the trial court shall pass to the merit of the case. Since the preliminary objections are overruled by the appellate.

see v. 9 file no. 43331 See v. 12 file no. 58540.2) Remand of case with new issues (art 343)

When the trial court has **omitted to frame** or try any issue or to determine any question of fact , which appears necessary to the appellate court essential to

the right decision of the suit (sub 1)

remand by reversing the decision of the trial court, due to **wrong issues** are identified by the **trial** court while deciding on the merit of the case;

provided that, the appellate court order the trial court to conduct **retrial by framing issues** (in here, the trial court is denied even to frame the issue of the case, but rather based on the issue framed by the appellate court.

@ Therefore, under art **341** the remand is ordered by the appellate court due to the decision of the trial court was on a *preliminary point* and the substantive issues in the case have not yet determined. Preliminary point" should be construed to mean not only objections not going to the merits, but **any** issue which rendered a decision on some remaining issue unnecessary;

provided that; the appellate court before ordering remand, it must have concluded that the decision on preliminary point should be reversed & also conclude that the disposition of the case ,as a result of the decision on the preliminary point, was erroneous.

To conclude, the effect of **reversal** is **remand**. art 182 & 121 also indicated that the **effect** of **omitted issue** and **omitted prayer** is **remand**.

3. Powers of Appellate Court:-

The appellate court is given **broad powers** with respect to its **disposition** of case. Where the evidence on the record is sufficient to enable the appellate court to pronounce judgment, it may, after resettling the issues, if necessary, finally determine the case notwithstanding that its decision proceeds on a different basis than to decision of the subordinate court. . See article **342** of the Cv.Pr.C

The **appellate** court may pass **any decree or order**, which ought to have been made by the subordinate court and may make any order or decree that the case may require. It does not matter that such order was not **requested** by **either** party.

In this connection, reference should be made to the **court's power under Art. 40(5)** to join as a respondent any person who was a party to the original proceedings, but who was not a party to the appeal. The court may join him as respondent and issue a decree or order affecting him. The only limitation on the power of the appellate court to issue a decree is that it **cannot** take away from a party **relief** which he was granted by the **subordinate court** and which is not challenged on appeal nor inconsistent with the final decree to be rendered.

Where there is more than one plaintiff or defendant and the decree appealed from proceeds on a ground

common to all plaintiffs or defendants, any one of the plaintiffs or defendants may appeal from the whole decree, and if the appellate court finds that the decree should be reversed or varied, it may do so in favor of all plaintiffs or defendants, even though some were not parties to the appeal. The test is whether the decree appealed from proceeded on a **ground common to all**.⁴

Pronouncing of judgment:-

The provisions regarding the pronouncing of judgment, **equally applicable** to the judgment of the appellate court.

In addition, there are **special requirements** for the giving of a judgment of appeal.

The judgment of the appellate court **must** contain the following contents as a **special requirement**:

- a) the points for determination, i.e. the grounds of appeal as set forth in the memorandum of appeal.
- b) further questions, if any, developed by the appellate court,
- c) The appellate court should give its own reasons for deciding as it has even where it is confirming the judgment of the subordinate court.
- d) The final decision of the court e) Where the decree is **varied or reversed**, the judgment of the appellate court must specify the relief to which the appellant is entitled.

It should be noted that, as with the judgment of the subordinate court the **operative part** of the judgment must be **reduced** to a **decree**. The decree may **specify** how and by **whom** the **costs incurred** in the suit are to be paid, and this would include both the costs in the original suit & on appeal.

F) Effects of appeal

1. Effect of appeal on several parties (art 331)

In case of **indispensable parties** or **co-defendant** and plaintiffs the benefit or any outcome of the case is for or against the interest of all indispensable parties: the appellant is presumed as the representative of all co-defendant or plaintiffs.

provided that, the **indispensable** parties, who are **not** willing to appeal are also joined the proceeding in the appellate court through **mandatory joinder**. 2. Effects of appeal on execution of decree

As a rule, appeal is not a bar per se or does not have **effects** on the **execution** of the decree; unless, there is stay of execution (see art 332-36)

Who shall grant stay of execution?

It is granted only when the decree debtor or the appellant faces **irreparable damage** .

Execution Order by the Appellate Court

The appellate court may either give the necessary **direction** for execution itself or may **delegate** the execution to the subordinate court. See article 183(1) (f).

Certified copies of the judgment or decree or both are to be furnished to the parties on application & court, which passed the decree appealed from. The parties on the **appellate court must file** with the original proceedings in the suit, and an entry of the judgment the appellate court will be made in the register of civil suits.

G) Second Appeal:-

Second appeal, is an appeal against the judgment of the **appellate court**, which **varied** or **reversed** the judgment appealed from.

If the appellate court confirmed the judgment of the first instance court, although on a **different ground**, a second appeal does not lie.

The second appeal is a **review** of the decision of the **first appellate** court varying the judgment appealed from and not a review of the decision of the trial court. **What is the ground or conditions of second appeal, is it errors or reversal or varying of judgment by the first appellate court?**

The rule is that the second appeal should be **limited** to that aspect of the decision of the appellate court **varying** or **reversing** the judgment of the first court.

The provisions applicable to the first appeal are therefore, as a general proposition, applicable to the

second appeal. See art 321(2)

H) Restitution

As a rule an appeal does not prevent execution of the decree unless a stay is ordered for sufficient cause. It may be, then, that the judgment in favor of one party will have been executed, and, on appeal, that judgment will have been reversed; The successful appellant is entitled to **restitution**, and he

must make his application for **restitution** in the court of **first instance**. That court must cause such restitution to be made, as will, so far as possible, place the parties in the same position as they would have occupied but for the decree or part of the decree that has been varied or reversed. See article **349**

In order to effect such restitution, the court may make any order, including;

- Refund of costs and for the payment of interest,
- Damages and compensation and
- Manse profits, which a party is entitled to as a result of the variation or reversal.

However, where the appellate court has required the respondent to post security for restitution, it would seem that the application for restitution should be made to the appellate court. In all other cases, it is to be made to the court of first instance.

The decision of the court on the application for restitution is **appealable**, and since the Code contains nothing to the contrary, we may assume that it will be appealable in Ethiopia as well.

3) Revision in Court of Cassation:-

According to Art. 80 (1) & (2) of the Federal Constitution of Ethiopia, the Federal Supreme Court and the State Supreme Courts have the highest and final judicial power over Federal and State matters, respectively. provided that, the Federal Supreme Court has the constitutional right to exercise power of Cassation over any final court decision containing a basic error of law. Similarly, the State Supreme Court also has given the same power on State matters. See art 80 (3) (a) cum art 80(b) of the Constitution.

Do you think that the power of Federal Supreme Court extends to exercise its power of Cassation over cases that are State subject matter? Should the State Supreme Court have power to exercise its court of Cassation?

While some said that the Federal Supreme Court **should not have** the power to exercise its court of cassation over state matters. For their argument, they cite the constitutional provision which indicates that the State Supreme Court has the highest and final judicial

power on state matters. The other argument which strongly suggests the

exercise of power of Cassation by Federal Supreme Court against State matters also base its argument on the same constitutional provision which states that —the Federal Supreme Court has a power of cassation over any final court decision¶; by broadly interpreting its meaning which includes the decision of the court of cassation of the State Supreme Court.

The Reconciling Point: the Federal Proclamation no. 454/2005, clearly defines that the decision made by the Federal Supreme Court on issues of law has a **binding effect not only on Federal matters but also on State matters**. provided that, the Federal Supreme Court has a power to exercise its court of Cassation even on cases that are purely State matters. In court of cassation both at Federal and State Courts, a party may take an application for revision in Court of Cassation, only when;-

- a) he/she has **exhausted** all his rights of appeal;
- b) unlike the appellate court, the court of cassation only reviewed the decision of the lower courts if it has an **error of law**, not error of fact.

Q. what are the procedures in cassation court?

Even if Ethiopian civil procedure code does not provides

the procedures, The usual procedures in the cassation bench are;

- 1) **hearing** on the petition, before the cassation court
- 2) If the court believes that the petition is without merit, it will **dismiss** it.
- 3) If it believes that it should be granted, the court of cassation declares the petition **admitted** and gives **notice** to the respondent by the method previously discussed.
- 4) then, upon appearance of the parties, on the date which is fixed by on summon already served to the respondent, give chance to the parties to **argue orally**.
- 5) Finally, the court will **render judgment on the issue**. By its decision the court may **confirm**, **vary** or **reverse** the decision of the lower court decision

CHAPTER THREE

EXECUTION OF DECREES

(see art 371-403) Both parties have different interests following the judgment. While the **judgment debtor** wishes to **review** the judgment by way of **appeal**, if there is such possibility, the **judgment creditor** becomes interested to **execute** the **judgment**, if there is some thing to be executed. Execution' may be defined as the **process** by which a **decree**, the *operative part of the judgment*, is **enforced** against a person who has failed to comply with its

terms. Normally, the decree includes a **clear order** that the party against whom it is rendered **shall do** or **refrain** from doing something or shall **pay** a definite sum of money or shall **deliver** a particular thing or shall **surrender** or **restore** immovable property.

1) Jurisdiction in Execution:-

Execution is essentially a separate proceeding. A decree can be executed either by the **good will** of the judgment debtor or by the **order** of the court.

As a **rule**, the court which *rendered* the decree or to whom execution was *delegated* by the appellate court or *referred* by the court of cassation will execute it; provided that, in certain circumstances, it may be transferred for execution to another court. (see art 371(1)) If the beneficiary is interested in executing a decree, he has to **appeal** to that effect to the court, which has jurisdiction.

1.1) Transfer for Execution:-372

If execution by that court is not feasible, the court may, upon its own **motion** or **application** of the decree holder, send the decree to another court for execution.

Provided that, the execution are directly transferred to another court up on the fulfillment of the conditions stated under art **372(2)**.

Therefore, if the court, which has a jurisdiction to

execute a judgment, decided to transfer its power to any other court, based on the above conditions, it shall send a copy of the decree, a certificate stating that "satisfaction of the decree has not been obtained by execution within its jurisdiction, or the extent of partial satisfaction".

Such transfer may be made **without notice** to the judgment-debtor, since he will be **notified** of the execution proceedings by the transferee court.

Do you think that the court, which has no local jurisdiction, can execute a judgment?

As a rule, the lack of local jurisdiction is waived if not raised and does not constitute grounds for reversal on **appeal** unless it has caused injustice, the transferee court should not **refuse** to execute the decree on that ground. See art **373**(2).

If the decree is clearly illegal, it would seem that the transferee court should be able to **refuse** to execute it.

Except in these circumstances, the transferee court should execute the decree without further inquiry. **Can the transferee court make any modification on the terms of decree?**

As a rule, the transferee court **cannot alter, vary or add** to the terms of the decree; provided that, the only exception is where the decree is ambiguous. In such a

case, the transferee court can **resolve** the ambiguity.

Therefore, if the decree has been appealed and modified by the appellate court, the transferee court can execute it as modified by the appellate court. See article **374**.

Hence, if the transferee court is directed to execute the decree, and in doing so, it has the same powers as if it had passed the decree itself.

It retains the power to execute the decree **notwithstanding** that an appeal has been taken from the judgment in the suit. But as an exception, the transferee court may not

transfer the decree for execution to still **another** court.

It can only refuse to execute the decree if it concludes that the **transferring** court lacked material jurisdiction to render it or that the decree is clearly illegal.

It **cannot** suspend execution except to grant a temporary stay so that, an application for a stay can be made to the transferring court.

It is bound by any order passed by the transferring court, although it may deal with property as to which it has issued an order of execution.

1.2) Powers of the Court upon Execution:- 375

In principle, the court can not execute a decree simply because it has a jurisdiction to that effect; Provided that, an application by the decree-holder to the court which

issued the decree is important. However, once an application is made the court

executing the decree has complete control over the proceedings, and all questions arising between the parties in the suit in which the decree was passed concerning the **execution**, **discharge** or **satisfaction** of the decree must be **determined** by that **court** and not by a **separate** suit. (see art **375**(1)).

The proceedings in execution are analogous to a suit on the original claim. Just as all questions relating to a suit must be raised at that time, all questions concerning the execution, discharge or satisfaction of the decree must be raised before the court executing the decree and not by a separate suit. See article 375.

A compromise intended to govern the **liability** of the judgment-debtor under the decree and to **affect** the **time** and manner of **enforcement** can be **recorded** and **enforced** under this **rule**, and a separate suit **cannot** be brought on the **compromise** agreement.

It does not apply to **questions** concerning the decree itself or matters unrelated to execution.

Is the execution courts decree are appealable?

The decision of the court on execution is **subject** to **appeal**, but if no appeal is taken, the proceedings are **final**, and what happened in those proceedings *cannot*

furnish the basis for a separate suit between the parties.

What if there is a pending suit, can the execution court grant a stay of execution?

where a suit by the judgment-debtor against the decree holder is pending in any court, the court which issued the decree may, on such terms as to security or otherwise as it thinks fit, stay the execution of the decree until the pending suit has been decided. See article 377.

NB. The other suit may be pending in any court and need not be pending in the court which issued the decree.

However, only the court, which issued the decree, may stay execution; execution may not be stayed by the court in which the other suit was filed.

2) Proceedings in Execution:- (378 - 393)

2.1) Application for Execution:-

A) General provisions:-

An application for execution is the first step to proceeding for execution, in case the decree is not satisfied by the judgment-debtor. He does not file a separate suit and that the general provisions applicable to the institution of suits are not applicable to proceedings in execution. Because the proceedings in execution are a continuance of the original suit, and the original suit is not finally closed until the decree is satisfied.

There is no fixed time stated for application.

But the application may be made **as soon as** the judgment-debtor is in default.

If he has been given time to satisfy the decree, the application may be made when the time has **passed** without the decree's having been satisfied; otherwise, it may be made upon the passing of the decree. See article **378**.

What should be the forms of the application for execution?

The application shall be in writing and **signed** and verified in the same manner as a pleading, and a certified copy of the decree sought to be executed shall be annexed; provided that, Where the application seeks the attachment of movable property belonging to the judgment-debtor, it shall be accompanied by an inventory of the property containing a reasonable description of the same. See article **379(1)**.

Where the application seeks the attachment of immovable property, it shall contain;

- A **description** of the property in accordance with Art. **225(2)**.

- A **specification** of the judgment-debtor's interest in such property to the extent believed or ascertained by the applicant.

- If such a description is lacking, the application should

be returned to the applicant with directions to furnish the description within a prescribed period of time. See article 379(2).B. Application by joint decrees

The rule is, any one of the beneficiaries may apply for the execution of the whole decree for the benefit of all, or where one has died for the benefit of the survivors and the legal representative of the deceased. See article 380(1)

However, we have to make sure that the decree imposes no condition to the contrary. Where the court sees sufficient cause for allowing the decree to be so executed, it shall make such order as it deems necessary for protecting the interests of the persons who have not joined in the application. See article 380(2)

If there are several parties, so that a representative class suit may have been justified under Art. 38, one holder of the joint decree should be able to file the application on behalf of the others. Or, if one of the decree-holders is outside of the jurisdiction, the other should be able to apply for execution.

C. Application by transferees

A right may be transferred to any other person for different reasons and at different times.

Such transfer could be made by the operation of law or by agreement of parties.

° If a decree is transferred by **assignment** in **writing** or by **operation of law**, the transferee may apply for execution. Once the application is granted the decree may be executed in the **same manner** and subject to the **same conditions** as if the application were made by the original decree-holder.^{381/1.}° Where the decree has been transferred by **assignment** and the assignee applies for execution, notice of the application shall be given to the **original decree-holder** and the **judgment-debtor**; the decree shall not be executed until the court has heard any **objection** either may have to its execution. See article **381(3)**.

The purpose of such notice is to permit the raising of defences to execution by the assignee, e.g., the assignee did not satisfy his agreement with the assignor or the judgment-debtor to pay the assignor.

NB. *such notice is not necessary where the transfer has been made by operation of law.*

Where a decree for the payment of money against two or more persons has been transferred to one of them, **either** by assignment or operation of law, the **transferee judgment-debtor** cannot execute the decree against the other judgment-debtor. The purpose of this rule is to force the transferee judgment-debtor to proceed against his co-debtors by

way of a **suit for contribution**, which is considered an a more appropriate procedure.

D) Application against sureties and representatives

Where the judgment-debtor dies before the decree has been fully satisfied, the decree-holder may apply to the court, which passed it for execution against the **legal representative** of the deceased judgment-debtor. See Art. **383** .

Where any person has become liable as surety: for the execution of a decree or any part thereof; for the **restitution** of any property taken in execution of a decree; or for the payment of any money or the fulfillment of any condition imposed on any person, under an order of the court in proceeding consequent thereon, the **decree or order** may be executed against him to the extent to which he has rendered himself personally liable and he shall be deemed to be a party within the meaning of Art. **375**, provided that such notice as the court in each case thinks sufficient shall be given to him.

2.2) Period of Limitation for application of execution

What is the period of limitation for the first application for execution?

Under Ethiopian Civil Procedure there is no specified period in which the first application to execute the decree must be filed. Since the decree creates an **obligation** for

the benefit of the decree-holder; the ordinary period of limitation for the enforcement of obligations, which is ten years, should be **applicable**, and if the application is filed more than ten years after the date of the decree sought to be executed, it should be barred by limitation. The Code does provide a period of limitation for a **second application**, and all matters relating to a second application are governed by the Code.

Per article **384**, once an application to **execute a decree**, other than one **granting an injunction**, has been made, no fresh application may be entertained after the expiration of ten years from:-

1. the date of the decree sought to be executed, or
2. where the decree or any subsequent order directs the payment of money or the delivery of property to be 'made at a certain date or at recurring periods, the date of the default.

There is no restriction on the number of applications that the decree-holder may make within the ten years period. **What is the effect of failure to comply the formal requirements of the application for execution?**

If these conditions have not been complied with, the court must reject the application; or if the defect can be remedied, it must allow the applicant to do so on such terms as it shall fix; provided that, Any amendment so

made shall be dated and signed by the presiding judge. The application is then deemed to be one in accordance with the law, and the amendment relates back to the time when the application was originally filed. See article 385.

2.3) Process of Execution

A). Receipt of application and examination of the judgment-debtor:- Where the application for execution is admitted, the same procedure as to the summoning of the defendant in the trial court will be applied. i.e., a copy is served on the judgment-debtor together with a summons requiring him to appear before the court on a day fixed in the summons to show causes why the decree should not be executed.

Once the judgment debtor appears before the court, the proceeding is oral one; Provided that, the judgment debtor is not allowed to bring any written response to the application. See art 386(1) and (2).

If the judgment-debtor does not appear, the court orders the decree to be executed and issues process for such execution.

- Where the application made for execution of a decree for the payment of money, the court must order the judgment debtor to be arrested and brought before the court for the

purpose being **examined** as to his means. See art 386(3,4). When the judgment-debtor appears, he may make **objection** to the execution of the decree, and the court will consider his objection and make an appropriate order; Provided that, the court would **dismiss** the application if it finds the decree has been **satisfied**, or that the application is barred by **limitation** or is otherwise **objectionable**.

What if the judgment debtor does not have anything to pay for the decree holder?

Where the court considers that the judgment-debtor does not have the means to pay the amount due, it may not issue any **process for execution**; Provided that, the **burden** should be on the decree-holder to persuade the court that the judgment-debtor has sufficient means. If the court **cannot** issue process because it considers that the judgment-debtor cannot pay the amount due, it should **not dismiss** the application, because it may issue process at **any subsequent** time on being satisfied that the judgment-debtor has a means to pay such amount.

Q. What is the effect of inability of the judgment debtor to execute the decree of the court?

✓ In the event that the judgment-debtor has **not shown causes** why the decree should not be executed, the court will issue process for execution of the decree in

such manner as the nature of the relief granted may require; provided that, in addition to issuing process for execution, the court is authorized to order the detention of the judgment-debtor as a means of forcing him to comply with the decree based on the conditions stated under and his detention in a civil prison for a period not to exceed six months. article 389.B. Execution of decrees for the payment of money

A decree for the payment of money, including a decree for the payment of money as an alternative to some other relief, may be executed by the attachment and sale of the judgment-debtor's property; See article 394.

The property attached may be movable or immovable, and there is no requirement that the decree-holder first proceed against movable property.

The value of the property attached must be, as nearly as may be, correspondant with the amount due under the decree.

The money payable under the decree may be paid into court whose duty is to execute the decree or to the decree-holder out of court or otherwise as the court which passed the decree may direct. See article 395.C.

Execution of cross-decrees

It may be that an application is made by a decree-holder against the judgment-debtor for execution of a decree

for the payment of money at the **same time** that the **judgment-debtor** has applied for execution of a decree for the payment of money against the **decree-older**, which was obtained in a **separate suit**.

Some how, it is similar to counter claim brought by the defendant when the plaintiff institute a case against him.

Where both parties have made such applications, their decrees are called *cross-decrees*, and the execution of such decrees is governed by special rules.

Requirements to apply special rules on execution of cross-decree:- In order for the rules relating to cross decrees to apply, the following conditions must be satisfied: 1) Both **decree-holders** must make application to the **same court** for execution of their decrees;

2) The decrees must be obtained in **separate** suits;

3) Both decrees must be for the payment of definite sums of money;

4) The **parties** must be the **same** in the sense that the decree-holder in one of the suits was the judgment debtor in the other suit and the parties were involved in both suits in the **same capacities**; and

5) Both decrees are **capable** of execution at the **same time by the court**. The holder of a decree passed against several persons jointly and severally may also treat it as a cross-decree in relation to a decree passed against

him singly in favor of one or more of such persons. Decrees may also be treated as *cross-decrees* where the assignee of a decree assumed judgment-debts due by the assignor to the judgment-debtor or where the judgment-debtor himself holds a decree against the assignee. See article 397(2).

In such a case, the following rules will be applicable:-

- 1) If the sums due under both decrees are equal, the court enters satisfaction upon both decrees.
- 2) Where the sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for only so much as remains after deducting the smaller sum.

Can the court execute the cross-decrees passed by different courts? The provisions for execution of cross-decrees are

necessarily limited to the situation where both decrees were issued by the same court;

An application for execution must be made to the court, which issued it, a court would not be capable of execution a decree that had been passed by another court and, therefore, could not apply those provisions.

Q. If so, does it mean there is no possibility to execute the cross decrees of different court?

However, these days there is specialization of benches

especially in **Federal Courts**. There are benches that assigned to entertain only a certain kind of cases. There are benches established only to the execution of judgment entered by different courts. In Federal Courts, two benches in *Lideta* and *Arada* division established only to the execution of judgment entered by d/t courts. **Application** of the execution of judgment is fully the responsibility of these benches. The court that has given the judgment **does not** entertain the execution of the judgment it has entered. Therefore, there is a chance, at least in Federal Court Structure in Addis Ababa, for the application of the execution of joint decree that entered by different courts.

D. Execution of other decrees

i. execution in case of movable property

A decree for **recovery** of **specific movable** property or a **share** of such property is to be executed by the seizure of the property or share thereof and the delivery to the decree-holder or such person as he appoints to receive delivery on his behalf. See article **399**.

However this rule is applicable only to property in the **possession of the judgment-debtor**. If the property is in the possession of someone else, the decree-holder must proceed to **attach that property**. This is so that the person in possession may have the

opportunity to raise an objection to the attachment.

ii. Execution in case of immovable property 402:-

Immovable property, possession is to be delivered by the execution officer to the decree-holder or such person as he may appoint to receive delivery on his behalf.

The execution officer may remove or open any lock or bolt or break open any door or do any other act necessary for putting the decree-holder in possession.

See article 402.

ii) Execution in case of the decree is for the joint possession of immovable property:-

Physical possession is not delivered. Instead, a copy of the decree is affixed in some conspicuous part of the property and the substance of the decree is proclaimed by beat of drum of some other customary mode.

Presumably, the judgment-debtor will then permit the decree-holder to enter into possession peaceably.

If the judgment-debtor resists the possession of the decree-holder, the decree-holder may obtain the assistance of the court against such resistance. See article 402 (2).

The court, instead of ordering such attachment and sale, may order the arrest or detention of the judgment-debtor if he is not already under arrest in the civil prison.

But, the maximum period of detention should not exceed **six months**. (See Article **389.3**) Attachment and Sale:- (404-455)

Most decrees are for the payment of **money**, and this is the primary method by which such decrees are executed. Although **coercive** methods against the judgment-debtor may be employed, it is **only** by **attachment** and **sale** that the court can guarantee satisfaction to the decree-holder.

3.1. Methods of and Objections to Attachment:-

A) Methods of attachment

When the decree-holder files his application for execution, he must indicate whether he **wishes** the decree to be executed by the **attachment** and **sale** of property, and if he does, the application for attachment must be accompanied by certain particulars.

Note also that the application for attachment must be for the attachment of specific property. Certain property is exempt from attachment.

There is no minimum amount of property that the judgment-debtor can retain but **exemptions** are made so that the judgment-debtor will not be **deprived** of the necessities of **life** and the **opportunity** to earn a livelihood. See article **404**.

Exemptions represent an attempt to leave the judgment debtor with the minimum amount of property that he

needs to **subsist** and to earn a **livelihood**.

On the whole, relatively little property is exempted from attachment, and it is likely that the decree-holder will **receive** some **satisfaction** despite these exemptions.

Depending on the nature of the property and the person who has control over it, different methods of attachment are to be employed.i) **Movable property in the possession of the judgment debtor**

debtor, (other than agricultural produce,)

Attachment is made by **physical seizure** of the property; and keeping the in a safe place and be responsible for its custody. See article **406**

ii) **Agricultural produce,**

Attachment is made by the **affixing** of **warrant** rather than by physical seizure. See article 407 of the Cv.Pr.C

iii) **Debt not secured by a negotiable instrument** or is a debt owed to the judgment-debtor under another decree,

Attachment is made by a **written order prohibiting** the judgment-debtor from recovering the debt and his debtor from paying him until further order of the court. Procedure to be followed after the property has been attached Art. 415

Attachment is to be **withdrawn** only under one of the following circumstances:-

1. When the amount decreed with costs and all charges

and expenses resulting from the attachment of the property have been paid into court; or

2. When satisfaction of the decree is otherwise made through the court or certified to the court; or

3. When decree which is the subject of the attachment is set aside or reversed.

If, due to the default of the decree-holder, the court is **unable** to proceed further with the application for execution after property has been attached, it may dismiss the application or, for sufficient cause, adjourn the proceedings to a further date. If the application is dismissed, the attachment

automatically ceases to be effective. See article **417**.

B) Objections to attachment

The most important part of the attachment procedure is that relating to the investigation of claims to the attached **property** and objections made to the attachment.

Property may not be subject to attachment either because it is **exempted** from attachment or because it is not the property of the **judgment-debtor**. See article **418**.

The **judgment-debtor** may file an objection to the attachment on the ground that the property is **exempted** from attachment, and

The **person claiming** that the property **belongs** to him

rather than to the judgment-debtor may prefer a claim to it. Similarly where a **debt** allegedly owing to the judgment debtor, a **share** in the capital of a corporation or property in the possession of a **third** party has been attached, the garnishee, officer of the corporation or party in possession may file an objection to the attachment or prefer a claim to the property.

Only the **judgment-debtor** can raise the objection that the property is exempted from attachment, since the exemption is for his benefit.

By the same token, the **judgment** should not be able to prefer a claim to the property on behalf of a **third** party. He should **notify** the **third** party, who can then file his own claim.

A claim or objection is made by presenting a written application to the court executing the decree. Upon receipt of the application, the court proceeds to investigate the **claim** or **objection**; where the claimant or objector was not a party to the **original** suit, he becomes a party to the proceedings for the purpose of the court's hearing his claim or objection, and is subjected to the power of the court with respect to examination and the like as if he were a party.

If the court finds that the claim or objection was **designedly** or **unnecessarily delayed**, it will not make the

investigation, and the claim is, in effect, rejected. See article **418**(1). If the court is satisfied, It is to release the property, wholly or to the extent it thinks fit, from the attachment.**419**

The court is not required to prepare an opinion with the order, but it would be good practice to do so.**3.2 Sale of property**

Once a property has been **attached** and, in case of **objection**, found to be subject to attachment, the court proceeds to order the sale of the property of such portion as may be necessary to satisfy the amount of the decree, and the proceeds of the sale or a sufficient portion thereof, will be paid to the **decree-holder**.

While there are general rules governing all sales, there are some procedures especially applicable to the sale of movable property and other procedures especially applicable to the sale of immovable property.

1. Special Provisions as to the SaleA. General rules (Art. 422, 424, 423, 426, 430, 427, 428)

Unless otherwise directed, all sales must be conducted by an officer of the court or a person **appointed** for this purpose and made by *public auction*. (PRINCIPLE)

EXCEPTION Sale by private contract article **422**.

The decree-holder is to make an application for an order of sale, which must be accompanied by a statement signed and verified in the manner prescribed for the

signing and verification of pleadings and containing, insofar as they are known or can be ascertained, the matters required to be specified in the proclamation of sale.

For the purpose of determining such matters, the court may summon and examine any person whom it thinks able to supply such information and may require him to produce any document in his possession or power; it may also appoint

an expert to estimate the value of the property to be sold.

See article 424.

Where the sale is to be by public auction, the court must cause a proclamation of sale to be made. The proclamation of sale may be drawn up only after notice to the decree and the judgment-debtor must state the time and place of sale and must specify as fairly and accurately as possible the following information:

1. the property to be sold and the estimated value thereof;
2. any encumbrance to which the property is liable;
3. the amount for the recovery of which the sale is ordered;
4. the terms and conditions of the sale and the manner in which and the time within the purchase price shall be paid;
5. all other information which the court considers material for a purchaser to know in order to judge the nature and value of the property. See article 423.

NB. **No sale** may take place, without the consent in writing of the **judgment-debtor**, until at least **30** days after publication of the proclamation in the case of immovable property, and **15** days after publication in the case of movable property. See article **426**.

The only exception is where the property is subject to decay or is of a kind that must be stored at a cost in excess of its value. In such cases the property may be sold **immediately** after attachment.

As long as there has been a proclamation which has been published, the sale is not void. The decree-holder may not bid at the sale without the written permission of the court, and a copy of the order granting permission must be given by the court to the auctioneer. The purpose of this restriction is to enable the court to impose conditions on the decree-holder if it" thinks fit. See article **430**.

At **any** time **before** the property is **knocked** down, that is, before the **auctioneer hammers** the sale to a close and declares the highest bid, the sale must be stopped if the **debt** and **costs**, including the costs of the sale, are tendered to the auctioneer or proof is given to his satisfaction that this amount has been paid into the court which ordered the sale. See article **427**.

Thus, before the sale is completed, the judgment-debtor

can still save the property by **paying** the amount of the **debt** and the **costs**. If there is a question as to whether the amount has been paid into court, the auctioneer should stop the bidding until he has an opportunity to determine 'whether it has been so paid.

At the second sale, the highest bid, whatever its amount, must be accepted and the property is sold. See article **428(1)**.

B. Sale of Movable Property (Art. 432, 401(4), 436-438)

The rules specifically applicable to the sale of movable property. Where the property to be sold is agricultural produce, the sale is to be held in certain places.

If the produce is a **growing crop**:- the sale is to be held on or near the land on which the crop has grown. If the crop has been **cut or gathered**,:- it must be held at or near the threshing floor or place for treading out grain or the like or fodder stack on or in which it is deposited. See article **432**.

The following rules govern the delivery and transfer of the property to the purchaser. **436-438**.

C. Sale of Immovable Property

If the property which is attached for the satisfaction of decree is an **immovable property**, we will follow **different** rules or procedures for selling it. These rules

are designed to achieve the following **purposes:-**

- 1) To enable the judgment-debtor to "save" the property if at all possible;
- 2) To protect the interests of all persons having a claim to the property;
- 3) To protect persons who would be adversely affected by a fraudulent or improper sale of the property;
4. To establish the ownership of the property in the purchaser;
5. To enable the purchaser to gain possession of the property without the necessity of a separate suit;
6. To determine all claims to possession of the property expeditiously.

2. Setting Aside the Sale:- 444 & ff

The most significant **difference** between a sale of **immovable** property and a sale of **movable** property is that in certain circumstances a **sale of immovable property can be set aside**. Once the immovable property is sold, the court for the following reasons set aside the sale. There are basically three situations where this can be done.

- a) The judgment-debtor has **no saleable** (capable of being sold) interest in the property;
- b) **Another** person has an interest in the property;
- c) There is material **irregularity** or **fraud** in the conduct of

the sale, resulting in **substantial injury** to the applicant.

a. Where the judgment-debtor has no saleable interest in the property:-

When the **purchaser** applies to that effect, on the ground that the judgment-debtor had no saleable **interest** in the property. It is important to state that the judgment debtor or decree-holder may not apply on this ground.

However, if the decree-holder **purchased** with **permission**, he is in the position of a purchaser and may **apply**. Therefore, it has been held that where the decree-holder or purchaser discovers that the judgment-debtor had no saleable interest in the property, he must move to set the sale aside before proceeding to attach other property.

The **application** is **authorized** only where the judgment debtor had **no saleable interest** in the property.

b. Where another person has an interest in the property;

The second situation which initiates the setting aside of sale of immovable property is in case where there is a **person** who has an interest in the property that has been sold **claims for setting aside the decision**.

The civil procedure code enables the rightful owner or a person, who has an interest superior to that of the purchaser, to protect that property or interest without

having to institute a suit against the purchaser.

So, a **transferee** of the property from the judgment debtor before the sale, the holder of a contract for sale made prior to the execution sale or a prior mortgage may have the sale set aside under this rule.

If the judgment-debtor were not the owner, the person who would assert his claim when the attachment was made, but if he **did not**, he may have the sale set aside under this rule.

However, the setting aside of the sale does **not relieve the judgment debtor** from his liability as to **costs** and **interests** not covered by the proclamation of sale. Where there was material irregularity or fraud in the conduct of the sale, resulting in substantial injury to the applicant.

A sale of immovable property may also be set aside on the ground of a **material irregularity** or **fraud** in the **publishing** or **conducting** of the sale provided that the applicant satisfies the court that he has sustained substantial injury by reason of such irregularity or fraud.

The application to set aside on this ground may be made by the **decree-holder**, **any** person entitled to share in a rateable distribution of assets, or by any person whose interests are **affected** by the sale. See articles **445**.

A transferee of the interest of the judgment-debtor prior to the sale would not be such a person, since his interests can in no way be affected by the sale.

He could apply to have the sale set aside as one owning or holding an interest in the property since he acquired his interest prior to the sale.

However, a transferee from the judgment-debtor following the sale who, as we said, *should not* be able to apply as one "*owning or holding an interest in the property, " should be able to apply as a "person whose interests are affected by the sale."*

If the sale is set aside, he will be entitled to the property.

So, his interests are affected and he should be able to raise a claim of material irregularity or fraud.

The expression, —*interests affected by the sale*,^l should be broadly construed, since it is only in exceptional circumstances that the sale will actually be set aside. But where those circumstances exist, any person whose interests can reasonably be said to have been affected should be able to apply to have it set aside.

The fact that the property realized only half of the value stated in the proclamation of sale, without more, does not justify setting the sale aside. The material irregularity or fraud must be affirmatively shown.

A material irregularity may be said to have occurred,

where there has been a failure to comply with the provisions of the Code designed to insure and the best price is realized upon the sale and that prospective buyers have all the information necessary to make a proper bid.

Even though a material irregularity or fraud may have occurred, the sale will not be set aside unless the applicant can prove that he *suffered substantial injury* as a result of such irregularity or fraud.

The injury must be proved independently, and it is **not presumed** from the existence of the irregularity or fraud.

The nature of the irregularity or fraud, however, may determine whether the applicant could have suffered substantial injury.

3. Confirmation, Delivery of Possession and Resistance

A. Confirmation:-

Where **no application** to set aside is made within two months from the date of the sale, the sale becomes absolute. It is not necessary for purchaser to make an application to this effect. By the same token, if an application to set aside is made and is **rejected**, the court shall make an order confirming the sale and thereupon the sale shall become absolute. Where a sale of immovable property has becomes absolute, the court must issue a certificate specifying

the **property** sold, the name of the **purchaser** and the **date** on which the sale came absolute. See articles **447**(1-3).

Where an application to set aside the sale is **granted**, the court must make an order to that effect. Such an order is not to be made, i.e., the sale is to be set aside, unless **notice** of the **application** to set aside has been given to persons affected thereby. See articles **446**(4).

"Persons affected thereby" should be construed to mean the auction purchaser, the judgment-debtor, the decree holder and any person entitled to rateable distribution.

Where the sale was aside without notice to the purchaser, he was entitled to apply for confirmation. However, so long as the application to set aside was made within the two month period, the court should not confirm the sale but reconsider the application to set aside after giving proper notice to the judgment-debtor.

B. Delivery of Possession

Normally it is obvious that immovable property cannot be seized physically.

Where the property is in the possession of the judgment **debtor** or some **person** on his behalf, or a person **claiming** under the title created by the judgment debtor subsequently to the attachment of the property, procedure Under **448** will be applied.

If the property is in possession of other person entitled to possession, delivery is effected as per 449.C. Putting into Possession:-450

The one who is ordered by the court to surrender his possession may refuse to do that. Hence, whenever possession is resisted or obstructed, the decree holder for the possession of immovable property has to have a remedy to secure its rights.

In such cases, the right holder has to put an application to the court of complaining of such resistance or obstruction. The court shall fix a day for investigating the matter and shall summon the person against whom the application has been made to appear and answer the charge. See articles 450.

If it is satisfied that the resistance or obstruction was occasioned with out good cause by the judgment-debtor or some other person at his instigation, it will direct that the applicant be put in the possession of the property. If the applicant is still resisted or obstructed, in obtaining possession, it may at his instance, also order that the judgment-debtor or some other person at his instigation be detained in a civil prison for a period not exceeding thirty days. See articles 451.

However, if the court is satisfied that the resistance or obstruction was occasioned by a person other than the

judgment-debtor, claiming in good faith to be in possession on his own account or on account of some person other than the judgment-debtor, the court shall make an order dismissing the application.

As long as the court is satisfied that the claimant is asserting a bona fide claim to possession **independent** of the claim of the **judgment-debtor**, it may not put the **decree-holder** or purchaser into possession. See articles **452.Art. 452.- Resistance or obstruction by bona fide claimant** *Where the court is satisfied that the resistance or obstruction was occasioned by any person, other than the judgment-debtor, claiming in good faith to be in possession of the property on his own account or on account of some person other than the judgment-debtor, the court shall make an order dismissing the application.*

Therefore, the crucial questions are the status of the person who is resisting or obstructing possession and the reason why he is doing so.

If the person is the **judgment-debtor** or one **holding** for **him** or claiming **through him**, the court must determine whether there is good cause for his resisting or obstructing possession. If there is **not good cause**, i.e., if the person does not have a legal right to possession, the court will direct that the **decree-holder or purchaser** be put into possession,

and if that order is still resisted, the person resisting may be imprisoned.

But if the person is not the judgment-debtor and not holding or claiming possession through him, the court must dismiss the application.

CHAPTER FOUR

RES JUDICATA AND SPLITTING OF CLAIMS:-

Res Judicata

General Principles

Res Judicata is a Latin term which literally means —*the matter having been litigated*. The principle is that once a matter has been litigated, it may not be re-litigated, and issues that have been determined once may not be determined again in subsequent suit.

A party to a suit may seek review of the judgment in accordance with the law, but in the absence of such review, the judgment and the decision on the issue in the suit is final.

It is important to distinguish the principle of *res judicata* from that of principle of *pendency*.

One and the same civil suit may not be instituted in more than one civil court. And where a suit may be instituted in any one of several courts, the court in which the statement of claim was first filed shall have jurisdiction

and the suit shall be pending in such court. The general condition for the application of the rule of *res judicata* is stipulated under Art 5.

It must be remembered that the rule of *res judicata* operates as a defence for the person in whose favor the previous suit or issue was decided. On the basis of Art 244 either party who wishes to assert a plea of *res judicata* must do so by way of a preliminary objection at the first hearing. If he fails to do so, the defence will be deemed to have been waived.

Once the plea has been asserted and the court is satisfied that it is well founded, the suit will be dismissed. In this regard, the only ground for avoiding the bar would seem to be that the court, which rendered the first judgment, lacked judicial or material jurisdiction to hear the case, and the party against whom the plea is made shall be able to raise this point. For our case "Former suit" includes a suit in which an *ex parte* or default decree was rendered. A suit that has been withdrawn with leave does not constitute a suit in which the matter was decided; to hold that such a suit operates as *res judicata* would obviously negate the purpose in permitting a fresh suit to be filed. See articles 278.

A decision on an interlocutory matter operates as *res*

judicata as to the issue involved. So, where one party objected that the court did not have the power to order the dispute to be referred to arbitration and the court held that it had such power; the decision as to the court's power was **res judicata**.

The same is true with decisions in **execution proceedings**, such as decision on whether a subsequent application is barred by limitation. For the purpose of Art 5 of the Civil Procedure Code, a

criminal proceeding is not a —*Former suit*¶. As it is clearly indicated under Art 2149 of the Civil Code: —In deciding whether an offence has been committed, the court shall not be bound by an **acquittal** or **discharge** by a **criminal** court.

This is the general rule. However, in practice, it must be remembered under our legal system an injured party may join a claim for **damages** in the **criminal proceeding**. So much so that, in our case, if the injured party fails to file a claim for damages in the criminal prosecution, the result in the criminal prosecution will be irrelevant in the subsequent civil suit.

NB If the accused in the criminal prosecution **pleaded guilty** to the offence, his plea of guilty could be **introduced** as **evidence** in the subsequent civil case, since ordinarily

any statement made by a party to a suit can be introduced **against him** by the opposing party.

As to the time when res judicata objection be raised, it should be raised **as soon as the first decision** is handed down by any of the courts without taking in to consideration which suit was first instituted.

1) Persons Bound:-

A. Parties to suit

According to Art **5(1)** in order a decision to have res judicata effect, the former suit have to involve the **same parties or parties under whom the parties in the subsequent suit claim**. In both instances, all parties must be litigating under the **same title**. Where persons litigate in good faith in respect to public or private rights claimed in common for themselves and others, **all persons interested** in the right are deemed to claim under the persons litigating in the original suit.

A party who **withdraws** or whose name is **struck off** **ceases** to be a party, and is **not bound by the judgment**.

The same is true as to a party who **dies** and as to whom the **suit abates**, eventhough his name erroneously remains on the record. By the same token, a person who was **not named** in the suit is not a party, although his rights may have been asserted.

Res judicata may also apply between co-defendants.

This will be so where:

1. there is **conflict** of interest between them,
2. it is **necessary** to resolve that conflict in order to give the plaintiff appropriate relief, and
3. there is actually a decision of the question as between the co-defendants.

B. Persons Claiming Under the Parties to Prior Suit

One way of defining claiming under and litigating under the same title is to say that the party claiming the benefit of the **prior judgment or sought to be bound** by it must be in priority with a party to the former suit.

In order for a person to be bound as a priority, he must have **acquired an interest** in the **subject matter** of the suit by **inheritance**, **succession**, or **purchase** subsequently to the former suit or must hold the interest subordinately in the sense that his interest is entirely dependent on the interest of the **superior holder** and automatically comes to an end after the interest is extinguished. Thus, the heir is bound by any decision involving the property in a suit by or against the **ancestor**; the purchaser is bound by any decision involving the property in a suit by or against the **seller** prior to the time of purchase.

And the lessee of land is bound by any decision

involving the property rendered in a suit by or against the **lessor**, since his interest is dependent on the interest of the lessor.

C. Other Situations

May a person should be bound by a judgment in a prior suit where the party in the subsequent suit was not a party to the former suit, and is not claiming under a party to that suit? The question is whether a party who has raised a matter

once **may re-litigate** the same matter in the **subsequent suit involving a different party**. Some courts elsewhere have held that, at least in civil suits, he may not do so.

So, where the **customer sued** the **manufacturer**, claiming damages for injuries caused by allegedly defective products, and in prior suit by him against the **retailer**, the court found that the product was not the cause of his injuries; he was **not permitted to sue the manufacturer**.

A party who has litigated a question once should not be able to litigate the **same question** again in a *subsequent suit even against a different party*. This is a desirable solution in that it prevents re-litigation of a question once decided. However, when we come back to our legal system, such a result is not clearly authorized by Art 5, and it is questionable whether the courts will apply this

expanded concept of res judicata. What is the effect of res judicata in suits where persons have litigated rights claimed in common for themselves and others?

On the basis of Art 5(4) the decision in such case is binding on all persons interested in that right, who are deemed to claim under the persons who litigated the original suit.

Matters Directly and Substantially in Issue:-

The principle of *res judicata* is applicable only where the matter directly and substantially in issue in the subsequent suit was also directly and substantially in issue in the former suit.

Matters which ought to have been raised in the first suit are deemed to have been raised, and consequently cannot be raised in the subsequent suit. Since, res judicata operates only as to the issues

decided in the first suit, it follows that where a suit is dismissed on a ground not related to the merits of the plaintiff's claim, a subsequent suit on the same claim is not barred by res judicata.

Examples of non-merits determinations that do not prevent a subsequent suit would be a dismissal of the suit for want of jurisdiction, for default of appearance, for failure to state cause of action, and for failing to post

security for costs when required.

The precise issues in the case will depend on what relief is sought by the plaintiff and what defences are asserted by the defendant.

Sometimes the question of what matters are directly and substantially in issue is tied up with the question of counterclaim and set-off. Therefore, his failure to assert the claim in the suit

against him does not bar a subsequent suit on the claim.

But, if he has asserted the facts giving rise to the claim as a matter of defence, an issue has been created, and the decision on that issue operates as *res judicata*.

On the other hand, where the facts giving rise to the defendant's claim were not necessarily involved in the prior suit, the subsequent suit may be maintained.

Finally, it should be noted that the decision on certain kinds of issues might not operate as *res judicata* because of the nature of the issue. A good example is an issue as to the amount due under an obligation to supply maintenance.

Since the extent of the obligation depends on various conditions, which may change, a decision on that question in a suit for maintenance could not operate as *res judicata* in subsequent suit, because the conditions at the time of the subsequent suit may have

changed.

The same can be said in custody of the children during divorce. The custody could shift at any time if it is found to the best interest of the children.

1.1) Matters Which Has Been Heard and Finally Decided:-

A) Issues Decided by the Court

A number of issues may have been raised in the case, but not all of them may have been decided. That is, if an issue has been raised, but has not been decided, that issue is not res judicata irrespective of the result of the suit. Where the case has been appealed, the decree of the appellate court must be considered in order to determine what issues have been decided. The judgment of the appellate court will operate as res judicata as regards all the findings of the lower court necessary to the decision of the appellate court even if they are not referred to in the judgment of the appellate court.

Appellate court may decide the case on a ground different from the ground on which the lower court decided it, and if it does so, only its decisions on that ground are res judicata.

Decision on an issue must be one that is necessary for the decision of the case. If the lower court for example

decided that a suit is barred by limitation and further decides that there **was no contract**, and the **appellate court confirmed the decision as to limitation**, the decision on the existence of the contract, even if confirmed by the appellate court, would not operate as res judicata. The **problem** of what issues are **res judicata** will arise whenever two or more issues have been decided by the court. The question will be whether the decision on **both** issues is **res judicata** Or **not**.

Where all the issues have been decided by the **lower court**, the answer may depend on whether the party against whom one of the issues was decided may appeal from that decision.

Eg Suppose that A sues B to recover damages for breach of contract. B contends that the parties did not enter in to a valid contract and alternatively, that performance was prevented by force majeure. The court resolves both issues in B's favor and dismisses the suit. A does not appeal.

Now the issue would be whether the decision on both issues is res judicata or not? In this case, since the case was **not appealed** and since both issues went to the **merit** of the case, the decision on both should be res judicata.

However, where the lower court decides both **merits** and

a non-merits issue, and no appeal is taken, only the decision on the non-merits issue should be res judicata. When the case is disposed of on the non-merits ground, the suit will be dismissed, and a decision on the merits cannot be said to be necessary to the decision of the case.

So, where in a suit for declaration that a lease was surrendered, the court dismissed on the ground that the suit could not be maintained, but also found that surrender had been effected, the decision on the matter of surrender would not be res judicata. Once the appellate court decided the non-merits ground; there was no reason for it to decide on the merits ground. Thus, the decision on that issue was not necessary to extend to the decision of the case, and should not be res judicata.

B) Res Judicata and Issues of Law

Another aspect of the problem of —heard and finally decided— concerns the res judicata effect of a decision on an issue of law where the rule of law on which the decision was based has subsequently been changed.

The change may occur as a result of newly legislation or a later decision of a higher court contrary to the prior decision of a lower court or a later decision of the court that decided that case, which overrules its

prior decision. The question is whether the former decision on the question of law is res judicata in a subsequent suit or not?

The general principle is that once an issue has been decided, it cannot be re-litigated in a subsequent suit by parties bound by the prior decision notwithstanding that the law is changed or the prior decision is found to be erroneous.

As to rights acquired under repealed legislation, Art. 3348 of the Civil Code stipulates that:

1. Unless otherwise expressly provided, legal situations created prior to the coming into force of this code shall remain valid, notwithstanding that this code modifies the conditions on which such situations may be created.
2. Unless otherwise expressly provided, this code shall not affect the consequences having arisen out of such legal situation prior to the coming into force of this code. When law is changed by subsequent legislation, the former decision operates as res judicata.

This is true because legal situations and rights existing prior to the enactment of the new legislation are not generally affected by such enactment.

This principle coupled with the general principle of res judicata prevents the re-litigation of a legal issue decided under repealed law.

However, it is important to observe that the **prior decision is not res judicata** where at the time of subsequent suit other facts have been occurred which brings the subject matter of the suit under the new legislation.

The more difficult question revolves around the effect of a subsequent judicial interpretation contrary to the interpretation in the prior suit. The principle may be stated in another way. The decision on question of *law litigated between two parties is res judicata* in any subsequent suit involving the same cause of action, but is **not res judicata** in a suit involving a different cause of action.

The important point to remember at this stage is that a **change in the law** or the **interpretation** of the law on which a decision on an issue was **based does not affect the operation of the rule of res judicata.**

1.2. The Scope of Res Judicata:-

The drafter of the Civil Procedure Code has made it clear that the scope of res judicata is to be very broad.

There are two aspects of this broad scope. **First**, any matter on which might and ought to have been made a ground of **defence** or **attack** in the suit shall be deemed to have been **substantially** and **materially** in issue.

Secondly, any **relief** claimed in the suit which has not

been expressly granted by the decree passed in the suit shall be deemed to have been **refused**.

General overview of the scope of res judicata:-

A) Matters to Be Raised

For the purposes of *res judicata*, the parties are deemed to have asserted **all such grounds**, which might and ought to have been asserted.

Therefore, res judicata applies not only to the issues that were **expressly decided**, but also to the issues that would have been decided if raised by the parties. In effect, they are deemed to have been decided adversely to the party seeking to raise them in subsequent suit, and a case may **not be re-opened** to permit a party to raise a new claim or defence that he would have raised in the first suit.

Where the plaintiff brings suit on a claim and fails to assert certain grounds that would entitle him to relief. On the basis of the ground he asserts, judgment is for the **defendant**. The plaintiff brings a subsequent suit alleging a **different** ground.

Since he is suing on the same cause of action and failed to the ground in the first suit, the *subsequent suit is barred by res judicata*.

In order for parties to be bound by the judgment in a former suit, they must be litigating under the same title

in the subsequent suit. So, a decision rendered against a person in his individual

capacity does not bar a suit by him in his representative capacity, since in the second suit he is suing on behalf of the person whom he represents.

Finally, it should be observed that the failure to assert a claim of counterclaim or set-off by the defendant does not bar his doing so in a subsequent suit.

By definition, the defendant has an option in this regard: he may assert the claim or may raise it in an independent suit.

Since he has this option, a claim of counter claim or set off does not constitute a —matter which ought to have been made a ground of defence|| with in the meaning of the rule.B) Relief not Granted

The second aspect of the scope of res judicata is provided under Art 5(3).

According to this article: "Any relief claimed in the former suit which has not been expressly granted by the decree passed in such suit shall be deemed to have been refused".

This have to be distinguished from the situation where 1);-the plaintiff splits his cause of action, that is, where he seeks recovery for only a part of the damage suffered, and from the situation where 2):-the plaintiff fails to ask

for some relief to which he was entitled.

On the basis of Art 216, where a plaintiff sues for only a part of the damage, he may not sue for the remainder. If he does not seek relief to which he was entitled, he may not claim the relief subsequently, for this too involves splitting of a cause of action.

The present rule deals with the situation where relief was in fact asked for, but was not expressly granted nor refused.

In other words, the present rule applies when the decree is silent as to the relief claimed.

In such a case the relief is deemed to have been refused notwithstanding the absence of an express ruling to this effect. 2) Splitting of Claims

2.1. General Principles

In line with article 216, every suit shall as far as practicable be framed so as to afford ground for final decision upon the subjects in the dispute and to prevent further litigation concerning them.

The principles of res judicata just discussed are designed to implement this purpose, particularly that requiring a party to assert all the grounds of attack or defence he may have at the peril of not being able to assert them in a subsequent suit.

The purpose is further implemented by the rule

prohibiting the **splitting of cause of action**. Every suit must include the whole of the claim, which the plaintiff is entitled to make with respect to the cause of action. If the plaintiff omits to sue in respect of any portion of his claim, he may not afterward sue with respect to the portion so omitted.

Plaintiff may not split his cause of action.

Furthermore, as to a party entitled to more than one relief with respect to the same cause of action, he must sue for all those relieves in one suit, and if he fails to do so, he may not afterwards do so for the relief omitted.

However, in **certain** cases, as it is clearly indicated under Art **216**(4), the court may give him leave to sue for additional relief at **another** time.

Thus, there are two aspects to the rule against splitting a cause of action;-

1. the plaintiff must include the whole of his claim with respect to the cause of action on which he sues, and
2. the plaintiff must seek all the relief to which he is entitled under that cause of action.

There is **one** situation where the whole of the claim need not be included. The plaintiff may **intentionally relinquish** a portion of his claim so as to bring it within the **jurisdiction of a particular court**. But if he does so, he may not subsequently sue with respect to the portion of the

claim that was relinquished.

Besides, that the plaintiff having a number of causes of action against a defendant is not required to join them in a single suit.

The rule only prohibits splitting of a single cause of action.

The rule refers to —omitting a portion of his claim.¶ So long as the plaintiff was aware of the claim, the omission of a portion, even if unintentional, bars a subsequent suit with respect to that portion.**what is the effect of the plaintiff's splitting his claim by filing simultaneous suit?**

One view is to hold that according to Art 11 of the Civil Procedure Code the suit should be consolidated, and this may be done whether the suits are pending before the **same** court or before **different** courts.

Another view is to hold that one must be **dismissed**, and the one bearing the latter number is deemed **filed** afterwards.

A **third** view is to hold that the plaintiff may select which suit he wants to **prosecute**; presumably he could **amend** his statement of claim to add the amount omitted.

The **latter** procedure seems the **soundest**. It is sound because there is no reason to deprive the plaintiff a portion of his claim simply because he files separate suits. Where a suit was brought only with respect to a **portion**

of a claim, the plaintiff should be permitted to amend to add the omitted portion.

At this juncture it is important to note that the prohibition is *against the bringing of a subsequent suit* with respect to the omitted portion. It does *not prohibit the plaintiff from asserting an omitted portion* of a claim as a defence in a subsequent suit.

The rule against splitting of claims is not applicable to proceedings in execution in the sense that the decree holder may present successive applications for realizing different portions of the same decree.

So, the decree-holder may file an application to recover possession of the property and a subsequent application to realize the costs. But the rule should be applicable to the money decrees,

since such decrees may be executed as a unit.

If the decree-holder only applies for execution of part of a money-decree, he may not later apply for execution of the balance.

2.2. The Whole of the Claim with Respect to the Cause of Action

1. What Constitutes the Whole of the Claim?

The rule prohibits only the splitting of a single cause of action and does not require the plaintiff to sue on all the causes of action he has against the defendant.

The question is whether the plaintiff has splitted his claim with respect to the cause of action or not? In order to answer this question, the court must determine: 1. what was the cause of action in respect of which the claim was made in the former suit; 2. what was the claim made in the subsequent suit, and 3. whether the claim made in the subsequent suit could have been made in whole or in part in respect of the cause of action in the prior suit.

The cause of action may be defined as that which gives occasion for and forms the foundation of the suit.

It is the fact which gives rise to the liability of the defendant and the relief claimed by the plaintiff.

Where the facts could give rise to only one cause of action, if the plaintiff has not included the whole of the claim in the prior suit, he may not subsequently sue on the rest of his claim. The rule against splitting of claims is not affected by the fact that the claim is due in installments.

So, where a debt is payable in installments and two or more are due at the time of suit, the plaintiff must sue to recover the amount due under both installments.

Nor does it matter that the obligation is to be satisfied in two ways.

Similarly, where at the time of the suit on a mortgage

debt, both principal and interest are due, and the mortgagee sues only to recover the interest, a subsequent suit for the principle is barred.

1. Single and Multiple Causes of Action

The most difficult case is when there is a situation of dispute as to whether the facts of the transaction gave rise to one cause of action or to two. If there are two causes of action, then the failure to claim the relief to which the party would be entitled under the second cause of action does not amount to a splitting of his claim since he was not making a claim with respect to the second cause of action.

However If there is two properties and both properties were injured by a single act, it would be a single cause of action.

If the court concludes that he is suing on a different cause of action, the subsequent suit is not barred, this is so because the rule only prohibits the splitting of a claim which the plaintiff is entitled to make with respect a single cause of action.

2. Omitting of Relief

A party may be entitled to more than one relief with respect to the same cause of action. In such a case, he may sue for all or any of such reliefs.

But if he omits, except with the leave of the court, to sue

for all such reliefs, he shall **not afterwards sue** for any relief so omitted.

The court has **no discretion to permit a plaintiff to omit** part of his claim, but may, in appropriate cases, permit a plaintiff to omit to sue for some of the relief to which he is entitled. With that exception, the rule prohibiting the **splitting of relief** is the same as the rule of prohibiting the **splitting of claims**, and some cases may involve both questions.

The court must **determine** whether the **relief** sought in the **subsequent suit existed** with respect to the cause of action on the plaintiff sued **previously**.

If it did, and the plaintiff failed to ask for it at that time, he may not do so in the subsequent suit. Moreover, a party may be entitled to **certain** relief at one time and to **other** relief at another time. If he was only entitled to certain relief at the time of the **former** suit, he is not barred from seeking the relief to which he has subsequently become entitled in the **later** suit.

The power of the court to grant the plaintiff leave to omit to sue for part of the claim.

The court may do so even if the **pecuniary value** of the relief allowed to be **omitted exceeds** its pecuniary **jurisdiction**.

However, before the court do so, it should be **convinced**

that there are very valid reasons for granting such leave and should not permit the plaintiff to avoid the provisions of the code relating to relinquishment of the claim in order to bring the case within the jurisdiction of a particular court. Leave should only be given in situations where the

plaintiff is entitled to alternative reliefs and may legitimately wish to exercise one such relief first.

Example, the plaintiff sues to obtain specific performance of a contract.

He is not interested in damages at that time, but if specific performance is not available, he might wish to claim them later.

Or, he may not have ascertained whether he can recover damages, because what he wants to is specific performance.

The granting of leave to sue for omitted relief should be done sparingly so as not to defeat the purpose of the rule requiring all reliefs to which the plaintiff is entitled to be sought in a single suit.

THANK YOU!!!